

1650 Arch Street, 22nd Floor, Philadelphia, PA 19103-2097
Tel: (215) 977-2000 ■ Fax: (215) 977-2740 ■ www.WolfBlock.com

Christopher L. Soriano
Direct Dial: (215) 977-2554
Direct Fax: (215) 405-2554
E-mail: csoriano@wolfblock.com

February 7, 2006

VIA FEDERAL EXPRESS

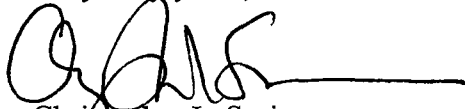
Marilyn R. Abbott, Secretary
United States International Trade
Commission
500 E Street, SW
Washington, DC 20436

Re: In the Matter of Certain Portable Power Stations and
Packaging Therefor

Dear Ms. Abbott:

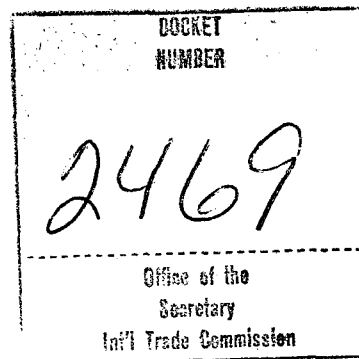
I enclose an original and 17 copies of Complainant's Verified Complaint Under Section 337 of the Tariff Act of 1930, as Amended. Kindly file the original as of record and return one copy to me in the enclosed self-addressed postage paid envelope. I also enclose certified copies of the File Wrapper, Patent, References, Assignment, Copyright and Trademark, and a Product Sampler for the Commission's use.

Very truly yours,



Christopher L. Soriano
For WOLF, BLOCK, SCHORR and SOLIS-COHEN LLP

/kla
Enclosures



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In the Matter of)
)
)
 CERTAIN PORTABLE POWER)
 STATIONS AND PACKAGING)
 THEREFOR)
)

Investigation No. 337-TA-_____

Complainant

Proposed Respondent

Counsel: James Greenberg, Esq.
Robert F. Zielinski, Esq.
Charles M. Hart, Esq.
Wolf, Block, Schorr and Solis-Cohen LLP
1650 Arch Street, 22nd Floor
Philadelphia, PA 19103
(215) 977-2000 phone
(215) 977-2740 fax

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EXHIBIT LIST

- Exhibit 1 Printouts from Respondent's Website and Rear Cover of CarsTech, Inc.'s Catalog
- Exhibit 2 Copy of U.S. Patent No. D469,739
- Exhibit 3 Copy of the Assignment for U.S. Patent No. D469,739
- Exhibit 4 Copy of U.S. Trademark Registration No. 2,594,538
- Exhibit 5 Copy of U.S. Copyright Registration No. VA-1-261-495 for JNS1880 Portable Power Station Product Packaging
- Exhibit 6 Copies of Pages from CarsTech's Catalog
- Exhibit 7 Copies of Web Pages from CarsTech's www.carstech-usa.com Website regarding 01.03.010 Portable Power Station
- Exhibit 8 Copies of Web Pages from Sinochem's www.carstech.com Website regarding 01.03.010 Portable Power Station
- Exhibit 9 Copy of Documentation Regarding Shipment of 01.03.010 Portable Power Station
- Exhibit 10 Claim Chart Comparing Claims of U.S. Patent No. D469,739 and Complainant's JNS1880 Portable Power Station
- Exhibit 11 Side-by-Side Comparison of Copyrighted Work and Complainant's JNS1880 Product Packaging
- Exhibit 12 Printouts of Digital Pictures of Respondent's 01.03.010 Portable Power Station
- Exhibit 13 Claim Chart Comparing Claims of U.S. Patent No. D469,739 and Respondent's 01.03010 Portable Power Station
- Exhibit 14 Printouts of Digital Pictures of the Product Packaging for Respondent's 01.03.010 Portable Power Station
- Exhibit 15 Side-by-Side Comparison of Copyrighted Work and Respondent's 01.03.010 Product Packaging

I. INTRODUCTION

1. Complainant Roadmaster (USA) Corp. ("Roadmaster") requests that the United States International Trade Commission ("Commission") institute an investigation into violations of Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337 ("Section 337").

2. This Complaint is based on the unlawful and unauthorized importation into the United States, the sale for importation, and/or the sale within the United States after importation of certain portable power stations. The power stations and product packaging therefor at issue herein are manufactured abroad and use a design and certain marks that, *inter alia*, infringe U.S. Patent No. D469,739 (the '739 Patent), U.S. Trademark Registration No. 2,594,538 and U.S. Copyright Registration No. VA-1-261-495. The '739 Patent is a valid and enforceable United States patent owned by Roadmaster. U.S. Trademark 2,594,538 and U.S. Copyright Registration No. VA-1-261-495 are valid and registered to Roadmaster.

3. Proposed Respondent's activities regarding the importation into the United States, the sale for importation, or the sale within the United States of certain portable power stations (and product packaging therefor), manufactured abroad are unlawful under 19 U.S.C. § 1337(a)(1)(B)(i) and § 1337(a)(1)(C), in that, *inter alia*, they constitute infringement of Roadmaster's valid and enforceable United States patent, specifically the '739 Patent, registered trademark and registered copyright.

4. Roadmaster's United States operations qualify as an industry in the United States relating to the articles protected by the patent at issue, within the meaning of 19 U.S.C. § 1337(a)(2).

5. Roadmaster seeks relief from the Commission in the form of a permanent general exclusion order against the importation into the United States of certain portable power

stations and product packaging therefor that utilize designs that infringe Roadmaster's valid and enforceable United States patent, trademark and copyrighted work. Complainant further seeks a cease and desist order against Proposed Respondent and its related companies, halting the sale, offer for sale and/or distribution within the United States after importation of portable power stations and product packaging therefor that utilize designs that infringe Roadmaster's valid and enforceable United States patent, registered trademark and registered copyright.

II. PARTIES

A. Complainant

6. Complainant Roadmaster is a corporation organized and existing under the laws of the state of New Jersey with its headquarters located at 41 James Way, Eatontown, New Jersey 07724.

7. Roadmaster is a leading innovator of after-market mobile and home audio equipment, automobile accessories and car care products. Through its corporate sales activities, Roadmaster sells its patented products to retailers and distributors of consumer and professional automobile products.

8. Roadmaster earned approximately \$338,000, \$345,000, \$393,000, and \$573,000 in 2001, 2002, 2003 and 2004 (through August 9, 2004), respectively, in income from sales of power stations using the design claimed in the '739 patent. Roadmaster's income generated from these sales is principally derived from sales to companies that sell automobile-related products to the general public.

9. Roadmaster has developed substantial proprietary technology relating to its portable power stations. Roadmaster's success depends, in large part, on its ability to establish, maintain and protect the proprietary nature of its technology through the patent process; it also protects its trademarks through the trademark registration process and copyrights

through the copyright registration process. In order to protect the patents, trademarks, copyrights, and trade secrets or know-how owned by Roadmaster, it monitors the use of its intellectual property and protected technology by third parties. Roadmaster does not license its patents, trademarks, copyrights, and trade secrets or know-how.

B. Proposed Respondent

10. The Proposed Respondent, Sinochem Ningbo ("Sinochem"), is a company engaged in the design and manufacture, importation, sale for importation, sale and/or use after importation of automobile products, including portable power stations. Proposed Respondent has facilities in China and distributes automotive products in the United States through CarsTech, Inc. d/b/a CarsTech USA, Inc. ("CarsTech"), a Delaware corporation having a principal place of business in San Jose, California.

11. The identities and activities of Proposed Respondent described below are based upon Complainant's current information and belief. A copy of information obtained from Proposed Respondent's and CarsTech's websites and the back cover of CarsTech's 2004 Catalog which provide evidence of the relationship Sinochem and CarsTech are attached as **Exhibit 1**. The CarsTech 2004 Catalog can be considered a catalog for Sinochem, as demonstrated by Sinochem's contact information being found on the rear cover of the catalog. See Exhibit 1.

12. Sinochem is the manufacturer of the devices subject to this Complaint and CarsTech is the seller of those devices imported into the United States. Certain wholly-owned or majority-owned subsidiaries of Sinochem Ningbo may also be involved in the importation, sale for importation, sale and/or use after importation into the United States of certain portable power stations (and product packaging). Roadmaster may move to add one or more of these entities to this investigation.

13. The operations of Sinochem and its affiliates, include, *inter alia*, the manufacture, importation, sale for importation, sale and/or use after importation into the United States of certain power stations that use patented designs claimed by the '739 Patent, the registered trademark covered by U.S. Trademark Registration No. 2,594,538 and product packaging covered by U.S. Copyright Registration No. VA-261-495.

14. Numerous other entities not specifically named as proposed respondents to this investigation (specifically, unrelated third-party customers of Sinochem that distribute products manufactured by Sinochem under their own brand names) may be engaged in the manufacture, assembly and/or widespread importation into the United States, sale for importation, and sale and/or use in the United States after importation of certain portable power stations that utilize patented designs claimed by the '739 Patent, registered trademarks covered by U.S. Trademark Registration No. 2,594,538 and copyrighted product packaging covered by U.S. Copyright Registration No. VA-261-495. The infringing activities of Sinochem and any such third-party customers constitute unlawful acts under Section 337 of the Tariff Act of 1930, 19 U.S.C. §§ 1337(a)(1)(B)(i) and 1337(a)(1)(C). Complainant may move to add one or more such entities to this investigation.

III. PRODUCTS AT ISSUE

15. The products at issue are certain portable power stations and product packaging therefor that infringe Roadmaster's valid and enforceable United States patent, registered trademark and registered copyright.

16. Portable power stations are an alternative to the conventional means of starting a car whose battery is "dead," to wit, by connecting electric cables from that car to a car with a live battery. Portable power stations incorporate portable batteries (DC batteries). Portable power stations permit the user to start a vehicle without locating another vehicle with a

"live" battery or calling a road service such as the American Automobile Association (AAA).

Consumers are purchasing and utilizing these devices more and more frequently.

17. The commercial products that are the subject of this dispute are portable power stations.

IV. PATENT AT ISSUE AND NON-TECHNICAL DESCRIPTION OF THE PATENT.

A. U.S. Patent No. D469,739

18. The '739 Patent was issued from United States Patent Application Serial No. 29/150,972, filed on October 30, 2001. A copy of the '739 Patent is attached as **Exhibit 2**. The '739 Patent expires on February 4, 2017, calculated as fourteen years from the grant date of February 4, 2003.

19. The Inventor, Mervin A. Dayan, assigned all rights, title and interest in the '739 Patent to Roadmaster on the 10th day of January, 2002. A copy of the assignment is attached as **Exhibit 3**.

20. Pursuant to Commission Rule 210.12(c), a certified copy and three additional copies of the prosecution history of the '739 Patent, as well as four copies of the patents and the applicable pages from each reference cited in the prosecution history, accompany the Complaint. There are not and have never been any foreign patents or patent applications corresponding to the '739 Patent, nor have any foreign applications been withdrawn, abandoned or rejected.

21. The '739 Patent discloses a design for a portable power station. It is a unique design for a portable power station that contains at least the following features: (a) the layout of the dials on the front surface of the portable power station; (b) raised, partially textured columns on the front surface of the portable power station; (c) raised, partially textured columns

on the upper portion of the back of the portable power station; and (d) raised, partially textured columns on the side portion of the portable power station.

22. The '739 Patent has one claim. The claim is infringed by Sinochem's and its affiliates' manufacture, importation, use, and/or sale of certain portable power stations in the United States (as discussed below in Section VII).

V. TRADEMARK AT ISSUE

A. U.S. Trademark Registration No. 2,594,538

23. U.S. Trademark Registration No. 2,594,538 issued from U.S. Trademark Application No. 75/412,359, filed on December 30, 1997. Roadmaster owns both the mark JUMP N START and registration therefor for a "battery-charging system, namely a portable battery and battery cables." A certified copy of the registration has been requested and will be provided once it is received. A copy of the registration is attached as **Exhibit 4**. The registration is in full force and effect, unrevoked, and uncanceled. The registration is *prima facie* evidence of the validity of the registered mark, Roadmaster's ownership of the registered mark and Roadmaster's exclusive right to use the registered mark in commerce on or in connection with the goods identified in the certificate of registration.

VI. COPYRIGHT AT ISSUE

A. JNS1880 Product Packaging

24. Roadmaster's JNS1880 portable power station product packaging became a registered U.S. copyright on July 15, 2004, being assigned Registration No. VA-1-261-495. A certified copy of U.S. Copyright Registration No. VA-1-261-495 has been requested and will be provided once it is received. A copy of the registration is attached as **Exhibit 5**. The registration is in full force and effect, unrevoked, and uncanceled. The registration is *prima facie* evidence of the validity of the copyright and Roadmaster's ownership of the copyright.

VII. IMPORTATION AND SALE

25. Upon information and belief Sinochem develops, designs and manufactures unauthorized portable power stations and product packaging that utilize Roadmaster's patented design, registered trademark and registered copyrighted work in, *inter alia*, China and either directly or through its affiliates imports and sells said portable power stations (and associated product packaging) in the United States.

26. Upon information and belief, Complainant believes that the articles subject to this Complaint may be classified under the following heading and subheading of the Harmonized Tariff Schedule ("HTS") of the United States: 8507 et seq. (electric storage batteries). The exact 10-digit HTS Code (heading/subheading and suffix) is dependent upon the specific capabilities and features of the product.

27. Upon information and belief, Sinochem manufactures and sells for import to and/or sells in the United States certain portable power stations (and associated product packaging) that infringe the '739 Patent, the registered trademark and registered copyrighted work. Pictures of at least some of the infringing products manufactured and sold by Sinochem can be found in its catalog and at its e-Catalog web-site, at domain names www.carstech.com/products.phpcatg_code=photo-1-1&page=2# and www.carstech-usa.com/products3582.html?catg:code=photo-1-1, including the 01.03.010 (portable power station). Copies of pages from the catalog are attached as **Exhibit 6** and printouts of web pages from CarsTech's and Sinochem's websites are attached as **Exhibit 7** and **Exhibit 8**, respectively. The two websites are virtually identical, differing only in regard to the uniform resource locator (URL) or domain name shown on the printouts.

28. The Sinochem portable power stations offered for sale in Sinochem's catalogs and on its U.S. web-site (www.carstech-usa.com) included the 01.03.010 (portable power station).

29. Sinochem, through an authorized distributor located in San Jose, California, has actively advertised and sold the products subject to this Complaint.

30. An investigator engaged by Roadmaster obtained in the United States Sinochem's 01.03.010 portable power station, by ordering from a U.S. telephone number, (408) 307-7216, found on the CarsTech website (See **Exhibit 7** containing contact information). Someone identifying herself to the investigator as the sales manager of CarsTech, reported that the product was manufactured in China by Sinochem. The product was received by the investigator in the United States. Documentation of the shipment of the product is attached as **Exhibit 9**.

31. Sinochem (through CarsTech) also promotes, offers for sale, and sells its products at trade shows, such as the Las Vegas National Hardware Show, which was most recently held May 10-12, 2004. During this show, Sinochem displayed its 01.03.010 portable power station.

VIII. THE DOMESTIC INDUSTRY

A. Overview

32. The domestic industry affected by Proposed Respondent's unfair acts and unfair methods of competition includes the activities, facilities and resources of Roadmaster in the United States devoted to the research and development and/or exploitation efforts, with respect to the '739 Patent, the registered trademark and registered copyrighted work.

33. Since 1981, Roadmaster and its predecessor companies have been engaged in the marketing and sale of automotive accessories and related products throughout the United

States. For over two decades, Roadmaster has been at the forefront of technology breakthroughs. Since Roadmaster began its pioneering development of home and automobile technologies, Roadmaster has made significant investments in facilities, labor and capital in the United States to design, develop, engineer and exploit its patented technology, trademarks and copyrighted works. Presently, Roadmaster holds patents covering products in many home and automobile technology categories such as light controllers, stereo speakers, mounting brackets and portable power stations. Roadmaster also owns many federally registered trademarks as well as common law trademarks. In addition, Roadmaster devotes significant resources in the United States to protecting its intellectual property, including patented technology, trademarks and copyrights. Roadmaster spends approximately \$775,000 per year on research and development, including creating prototypes and paying salaries of employees in its research and development team.

34. As set forth above in Section II.A., Roadmaster sells products incorporating the '739 patent, its registered JUMP N START trademark and its copyrighted JNS1880 product packaging to retailers and distributors of consumer and professional products.

35. Since 1998, Roadmaster's sales of products under the JUMP N START trademark exceeded \$9,400,000, and Roadmaster has spent considerable time and money in establishing goodwill and promoting products bearing the JUMP N START mark.

36. Since 2001, Roadmaster's sales of products covered by the '739 patent exceeded \$1,650,000. The products generally were packaged in the JNS1880 copyrighted product packaging.

37. As a result of its substantial investments in research and development, Roadmaster has developed a reputation in the United States as a leader in home and automobile technology.

B. Substantial Investment in the Exploitation, Including Engineering, Research and Development, and Sales of Products Utilizing the Patent, Registered Trademark and Registered Copyright at Issue

(1) Economic Prong

38. Roadmaster alleges that a domestic industry exists based on the technical prong as a result of its sales of its portable power stations incorporating the '739 Patent, registered trademark and registered copyrighted work.

39. Between the years 1998 and 2000, Roadmaster estimates that it spent approximately \$100,000 researching and developing the product that became the JNS1880. As set forth in Paragraph 33, Roadmaster spends approximately \$775,000 annually on research and development. This research and development includes inventing new products, creating new trademarks and authoring new works; additionally, approximately 8% of Roadmaster's annual R&D budget is allocated to developing new product packaging and quality control for the JNS1880 and related portable power station devices. Accordingly, Roadmaster has made substantial investments in the creation and exploitation of its inventions, trademarks and copyrights, including the '739 Patent, U.S. Trademark Registration No. 2,594,538 and U.S. Copyright Registration No. VA-1-261-474. Roadmaster also intends to continue to invest resources, both financial and otherwise, in its ongoing efforts to sell products incorporating the '739 Patent, registered trademark and registered copyrighted work.

(2) Technical Prong

40. Roadmaster is relying on the technical prong for establishing that a domestic industry exists with respect to the '739 Patent, its registered trademark and its registered copyright; it produces commercial products that incorporate technology covered by the '739 Patent, trademark covered by its trademark registration and copyrighted work covered by its copyright registration. See attached **Exhibits 10 and 11**.

C. A Domestic Industry Exists

41. All of the activities of Roadmaster, its employees and inventors described above constitute a domestic industry devoted to the exploitation of the '739 Patent, U.S. Trademark Registration No. 2,594,538 and U.S. Copyright Registration No. VA-1-261-474.

IX. UNLAWFUL ACTS COMMITTED BY RESPONDENT

A. Patent Infringement Violations - Section 337(a)(1)(B)(i)

42. On information and belief, Sinochem is currently using designs for a portable power station, as described and claimed in the '739 Patent, in its portable power and air station (such as the Sinochem 01.03.010 portable power and air station).

43. Design patent infringement occurs when an accused design is substantially the same as the claimed design. If an ordinary observer would be deceived when confronted with the accused device such that one design would be confused with the other, the accused device infringes the design patent.

(1) Claim

44. The claim of the '739 Patent being infringed by Respondent Sinochem is "The design for a portable power station, as shown and described."

(2) Infringement by Sinochem

45. Attached hereto as **Exhibit 12** are digital pictures of Sinochem's 01.03.010 portable power station.

46. Attached hereto as **Exhibit 13** is a claim chart showing the '739 Patent and Sinochem's 01.03.010 portable power station.

47. The Sinochem 01.03.010 utilizes the portable power station design claimed in the '739 Patent.

48. Because each and every element of the claim is present in Sinochem's 01.03.010 portable power station, Sinochem infringes the claim of the '739 Patent.

49. Sinochem has infringed and continues to infringe the claim of the '739 Patent under 35 U.S.C. § 271(a) (direct infringement) by its manufacture, importation, sale for importation, and/or its sale in the United States after importation of certain portable power stations covered by the asserted design claim of the '739 Patent, without authority from Roadmaster.

50. On information and belief, Sinochem has knowledge of the '739 Patent.

51. Sinochem has also infringed and continues to infringe the claim of the '739 Patent under 35 U.S.C § 271(b) (induced infringement) by aiding and abetting distributors to sell, after importation, certain portable power stations whose design is covered by the asserted claim of the '739 Patent, and by inducing others to use the claimed design by operating and selling those products, without authority from Roadmaster.

B. Trademark Infringement Violations - Section 337(a)(1)(C)

52. On information and belief, Sinochem is currently using designs for product packaging for a portable power station that include the trademark that is the subject of U.S. Trademark Registration No. 2,594,538.

(1) Registered Trademark

53. U.S. Trademark Registration No. 2,594,538 for JUMP N START is for a "battery-charging system, namely, a portable battery and battery cables."

(2) Infringement by Sinochem

54. Attached hereto as **Exhibit 14** are digital pictures of the product packaging for the Sinochem 01.03.010.

55. The Sinochem 01.03.010 product packaging incorporates a trademark identical to that which is the subject of Roadmaster's trademark registration.

56. As set forth above, Sinochem has imported and used in commerce, without Roadmaster's consent, reproductions, counterfeits, copies or colorable imitations of Roadmaster's registered trademark in connection with the sale, offering for sale, distribution and/or advertising of the Sinochem 01.03.010. Sinochem's use of "JUMP N START" on or in connection with portable power automotive and power accessories, including, without limitation, portable power stations, sold through similar channels of trade to similar classes of consumers as Roadmaster's products containing its JUMP N START registered trademark, has intentionally and willfully misled and deceived, and will continue to mislead and deceive an appreciable number of consumers into believing that Sinochem's goods are those of, or related to, Roadmaster when, in fact, they are not. The use of "JUMP N START" by Sinochem is confusingly similar to Roadmaster's JUMP N START trademark. Because Roadmaster's use of its registered JUMP N START trademark contains the statutorily required registration notice, Sinochem's acts of trademark infringement have been and are knowing, intentional and willful.

57. As a result of Sinochem's wrongful acts, Roadmaster has suffered and will continue to suffer substantial and irreparable injury, loss and damage to its rights in and to its registered JUMP N START trademark and the goodwill associated therewith.

58. Roadmaster has not authorized Sinochem to use its protected trademark in connection with the sale, offering for sale, distribution and/or advertising of portable power stations.

59. Sinochem's use of Roadmaster's protected trademark has caused and continues to cause confusion, mistake and/or deception to the public and constitutes willful and

deliberate trademark infringement in violation of Section 32 of the Lanham Act, 15 U.S.C.

§ 1114.

C. Copyright Infringement Violations - Section 337(a)(1)(B)(i)

60. On information and belief, Sinochem is currently utilizing designs for product packaging that copy in whole or in part copyrighted material owned by Roadmaster.

(1) Copyrighted Work

61. As set forth above, Roadmaster has a U.S. Copyright Registration for its JNS1880 portable power station product packaging on July 15, 2004. See Exhibit 5.

(2) Infringement by Sinochem

62. Attached hereto as **Exhibit 15** is a comparison of relevant panels of the copyrighted work and the product packaging for Sinochem's 01.03.010 portable power station.

63. Sinochem has and continues to infringe Roadmaster's copyrighted work under 17 U.S.C. § 500 by its importation, reproduction and distribution of works that either knowingly or willfully copy in whole or in part Roadmaster's copyrighted product packaging.

64. As set forth above, Sinochem has used in commerce, without Roadmaster's consent, reproductions, counterfeits, copies or colorable imitations of Roadmaster's copyrighted work in connection with the sale, offering for sale, distribution and/or advertising of protected items.

65. As a result of Sinochem's wrongful acts, Roadmaster has suffered and will continue to suffer substantial and irreparable injury, loss and damage to its rights in and to its copyrighted work.

66. Roadmaster has not authorized Sinochem to use any of its copyrighted product packaging in connection with the sale, offering for sale, distribution and/or advertising of portable power stations.

X. RELATED LITIGATION

67. The '739 Patent, U.S. Trademark Registration No. 2,594,538 and U.S. Copyright Registration No. VA-1-261-495 are also the subject of a complaint filed concurrently herewith by Roadmaster against Sinochem and CarsTech in the United States District Court for the District of Delaware, alleging *inter alia*, infringement of each of the above. As a result of arm's-length negotiations, Roadmaster and CarsTech have entered into a Settlement and Release Agreement which provides, *inter alia*, for the entry of a permanent injunction against CarsTech. The District Court has approved a stipulated injunction against CarsTech. There is and has been no other foreign or domestic court or agency litigation.

XI. RELIEF REQUESTED

WHEREFORE, by reason of the foregoing, Complainant requests that the United States International Trade Commission:

A. Institute an immediate investigation pursuant to Section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. § 1337, with respect to Sinochem's violations of that section based on the importation into the United States, sale for importation and/or sale within the United States after importation of portable power stations and product packaging therefor that include designs that infringe United States Patent No D469,739, trademarks that infringe U.S. Trademark Registration No. 2,594,538 and product packaging that infringes U.S. Copyright Registration No. VA-1-261-495;

B. Schedule and conduct a hearing on permanent relief pursuant to 19 U.S.C. §§ 1337(d) and (f) of the Tariff Act of 1930, as amended, and following that hearing;

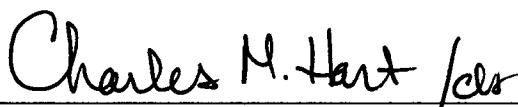
C. Issue a permanent general exclusion order, or in the alternative issue a permanent exclusion order specifically directed to Sinochem, pursuant to 19 U.S.C § 1337(d) excluding entry into the United States of portable power stations that include designs that infringe United

States Patent No. D469,739, trademarks that infringe U.S. Trademark Registration No. 2,594,538 and/or product packaging that infringes U.S. Copyright Registration No. VA-1-261-495;

D. Issue a permanent cease and desist order pursuant to 19 U.S.C. § 1337(f) prohibiting Sinochem and its related companies from engaging in the importation, sale for importation, marketing, distribution, offering for sale, the sale after importation of, or otherwise transferring within the United States, portable power stations that infringe United States Patent No. D469,739, U.S. Trademark Registration No. 2,594,538 and U.S. Copyright Registration No. VA-1-261-495; and

E. Issue such other and further relief as the Commission deems just and proper under the law, based upon the facts determined by the investigation and the authority of the Commission.

Respectfully submitted,

 /cler

By: James Greenberg, Esquire
Robert F. Zielinski, Esquire
Charles M. Hart, Esquire
Wolf, Block, Schorr and Solis-Cohen LLP
1650 Arch Street, 22nd Floor
Philadelphia, PA 19103
(215) 977-2000

Dated: February 7, 2006

VERIFICATION OF ROADMASTER (USA) CORP.

I, ^{Mervin A.}~~Maurice S.~~ Dayan, declare as follows:

1. I am president of Roadmaster (USA) Corp. ("Roadmaster") and am duly authorized to sign this Complaint on behalf of Roadmaster;
2. I have read Roadmaster's VERIFIED COMPLAINT UNDER SECTION 337 OF THE TARIFF ACT OF 1930, AS AMENDED and am aware of its contents;
3. The Complaint is not being presented for any improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of the investigation;
4. To the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the allegations and other factual contentions in the Complaint have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery; and
5. The claims and other legal contentions in the Complaint are warranted by existing law or by a non-frivolous argument for the extension, modification or reversal of existing law or the establishment of new law.

I declare under penalty of perjury that the following statements are true and correct.

Executed this 3 day of ^{June}~~March~~ 2005.

Mervin A.



Maurice S. Dayan
President, Roadmaster (USA) Corp.

1



SINOCHEN NINGBO IMP & EXP CO., LTD.



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Introduction Products News

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<http://www.carstech-usa.com>

Production line

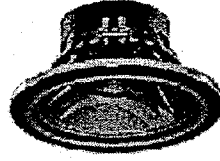
QC system

R&D system

Warehouse

Equipment

Quality Attestation



NEWS

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AS THE IMPORTANT CONSTITUENT PART OF SINOCHEN NINGBO IMP.&EXP.CO.,LTD. WHO IS THE LEADING TRADE COMPANY IN CHINA, CARSTECH IS SPECIALIZED IN DEVELOPING, AND PRODUCING KINDS OF CAR ACCESSORIES AND PARTS. ...

Products Search



ADD:

1620 Sego St.
San Jose, CA95131

TEL:

408-307-7216

FAX:

408-436-6564

E-mail :

New Products

[» more](#)

02.42.010 6v 5ah rechargeable battery Flash warning light Reading light Packing: 1pc/color box , 12pcs/ctn G.W./N.W.:26/24kg Meas.: 43x37.5x43cm 4,932pcs/20'FCL



01.16.010 12v 17ah battery 11w fluorescence

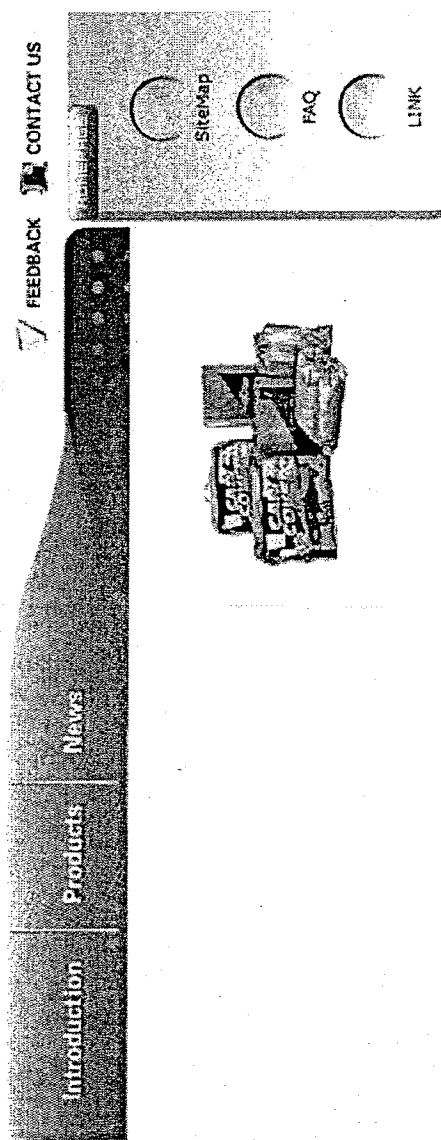


light Packing:1pc/color box 2pc/ctn G.W./N.W.:
17kg/16kg Meas.:25x32x31cm , 2,200pcs/20'FCL

sales@carstech-
usa.com



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INTRODUCTION

As The Important Constituent Part Of Sinochem Ningbo IMP.&EXP.CO.,LTD. Who Is The Leading Trade Company In China, Carstecg Is Specialized In Developing, And Producing Kinds Of Car Accessories And Parts.

There Are Cover 20 Share Holding Manufacturing Enterprises And One R&D DepartmentE As The Base To Provide Our Customers With The Best Service And Highest Quality Products At The Most Competitive Prices.

All The Products Are On The Basis Of Scientific Management Method And Strict Quality Control. Carstech Stands For Technology And Innovation In The Field Of Car Accessories And Parts, Its Concern Is The Details Of Products And Requirements From The Market. Carstech, Professional!



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Keywords

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Businesses

Overview
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 •SINOCHM Tianjin Import & Export CORP.
 •SINOCHM Hebei Import & Export Co., Ltd.
 •SINOCHM Qingdao Industries Company
 •SINOCHM Shanghai

SINOCHM NINGBO IMPORT & EXPORT CO., LTD.

A brief introduction to the company

SINOCHM NINGBO IMPORT & EXPORT CO., LTD. (SINOCHM NINGBO) was set up in 1987, as a subsidiary of the China National Chemicals Import & Export Corporation.

Relying on the fine reputation of Sinochem, Sinochem Ningbo has developed into a comprehensive trading enterprise with pharmaceutical chemicals as the major business, accompanied by trading, R & D and production. The annual sales turnover has topped 200 million USD. For 10 consecutive years, th been ranked among the first 300 of the 500 top import & export enterprises in China. It has been "Advanced Enterprise of Ningbo City and Zhejiang Province."



Entering the new century, Sinochem Ningbo has maintained a good momentum while pursuing its sustainability. The company boasts a high-quality staff, 20% of whom have postgraduate diploma management capability was further enhanced by acquiring ISO9001, ISO4001 and OHSAS1800 keeping it abreast of the international level. In the future, we will make unremitting efforts to provide "superior services" to our clients.

It is our hope to join hands with you and draw up a blueprint for the new century together.

Business scope

The company has 8 business divisions, namely, pharmaceuticals, chemicals, agrochemicals, medical, health food, electro-mechannery, light industrial products and import.

The company's Business scope covers chemical materials, dyestuffs, pigments, rubber products and intermediates, pesticides and intermediates, pharmaceutical materials and intermediates, finished medicines, Chinese herbal medicines, health care products, coatings, latex, sanitary ware, light i textiles, hardware & machinery, grain & oil, and native produce & animal by-products. The company is a broker for the import & export business of the above-mentioned commodities, carries out joint-venture production, material-processing, counter trade and entrepot trade.



Registered brands



Improt & Export Corp.
•SINOCHEN Jiangsu
Improt & Export
Corporation
•SINOCHEN Ningbo
Improt & Export Co., Ltd.
•SINOCHEN Guangdong
Improt & Export Co.
•SINOCHEN International
Chemicals (Hong Kong)
Co., Ltd.

Asia

•SINOCHEN Trading
(Singapore) Pte. Ltd.
•SINOCHEN Japan
Co., Ltd.

North America

•SINOCHEN (U.S.A.) Inc.

"Sining" brand was created in 1996. It is mainly applied to the export of pharmaceutical materials intermediates and Western medicines. The brand was firstly registered in China in 1998. At the e year, it was approved by Yemen's Trademark Bureau. At the same time, it applied for registration Nigeria. Other trademarks in the process of trademark registration MSM -- mainly used for medic

KLEANTOUCH -- mainly used for medical gloves, condoms, examination gloves and other latex coatings, non-woven fabrics and disposable medical items.

TRIVERS -- mainly used for dyestuffs.

Contact method

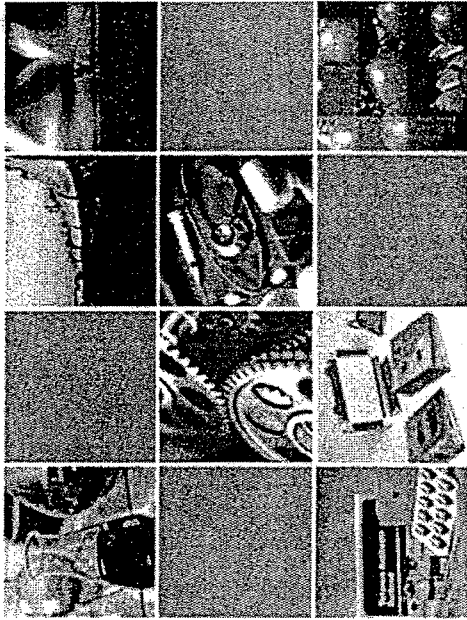
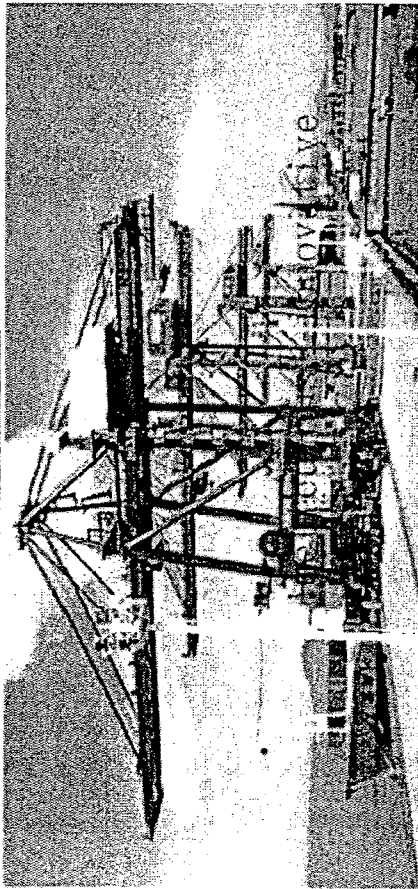
Address: 21 JIANGXIA STREET, NINGBO, CHINA
Post code:315000
Tel: 0086-0574-87348868 0086-0574-87346764
Fax: 0086-0574-87366775
E-mail:nbchem@sinochem-nb.com
Web Site: www.sinochem-nb.com

SINOCHEN CORPORATION
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中化宁波(集团)有限公司
SINOCHEN NINGBO LTD.

中文版 : ENGLISH



Keyword:

Product Category: Total Commodity

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News

- ▶ SINOCHEN passes GSP authentication by SFDA (2003-12-4)
- ▶ Asserted by experts.sinochem ningbo become first batch of e (2003-12-4)
- ▶ Pharmaceuticals division is ... (2002-8-21)

Certificate



ISO9001



ISO14001

SINOCHEN NINGBO LTD.

was established in 1987 and is a subsidiary of SINOCHEN CORPORATION, which ranked the 270th among the top 500 enterprises in the world in the year 2003.

Apart from the import & export, domestic trade and entrepot trade,

SINOCHEN NINGBO has, in recent years, also expanded to the fields of manufacturing chemicals, pharmaceuticals and intermediates. SINOCHEN NINGBO has grown as a comprehensive international trading company with yearly turnover USD200 million. Owing to the advantage of credit,

SINOCHEN NINGBO acts as the standing director of CCCMHPIE (China Chamber of Commerce of.....

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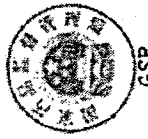
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Email: nbchem@sinochem-nb.com



SINOCHEM NINGBO

CARSTECH manufacturing group

9~12 Fl., 21 Jiangxia St., Ningbo 315000, China

Tel: 0086-574-87260135 Fax: 87242983, 87366775

E-mail: carstech@sinochem-nb.com

Web: www.carstech.com



CARSTECH USA, Inc

1620 Sego Court

San Jose, CA 95131

Tel: 408-667-9565/408-876-7616

Fax: 408-436-6564

E-mail: sales@carstech-usa.com

Website: www.carstech-usa.com

2



US00D469739S

(12) **United States Design Patent** (10) Patent No.: **US D469,739 S**
Dayan (45) Date of Patent: **** Feb. 4, 2003**

(54) **PORTABLE POWER STATION**

(75) Inventor: **Mervin A. Dayan, Oakhurst, NJ (US)**

(73) Assignee: **Roadmaster (USA) Corp., Eatontown, NJ (US)**

(**) Term: **14 Years**

(21) Appl. No.: **29/150,972**

(22) Filed: **Oct. 30, 2001**

(51) LOC (7) Cl. **13-02**

(52) U.S. Cl. **D13/107**

(58) Field of Search **D13/107, 108,**
D13/110; 320/100-115, 104, 105

(56) **References Cited**

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2055060 • 7/1996

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* cited by examiner

Primary Examiner—Joel Sincavage

(74) *Attorney, Agent, or Firm*—Wolf, Block, Schorr and Solis-Cohen LLP

(57)

CLAIM

The design for a portable power station, as shown and described.

DESCRIPTION

FIG. 1 is a perspective view of the present invention;

FIG. 2 is a front elevational view thereof;

FIG. 3 is a rear elevational view thereof;

FIG. 4 is a right-side elevational view thereof, the left-side elevational view being a mirror image thereof; and,

FIG. 5 is a top plan view thereof.

The broken lines showing other environmental structures are for illustrative purposes only, and do not form part of the invention.

The bottom plan view of the invention has no ornamentation and thus is not shown in the drawings.

1 Claim, 5 Drawing Sheets

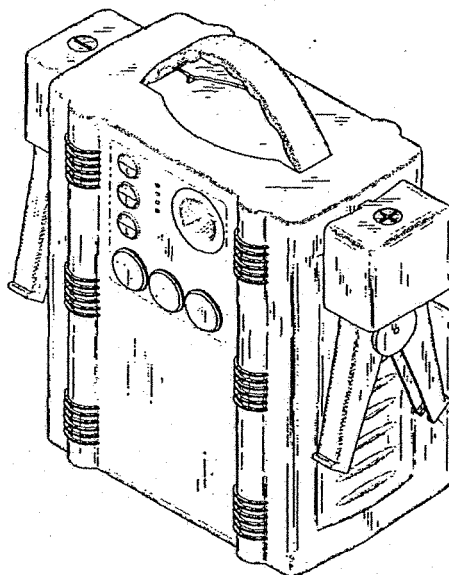


FIG. 1

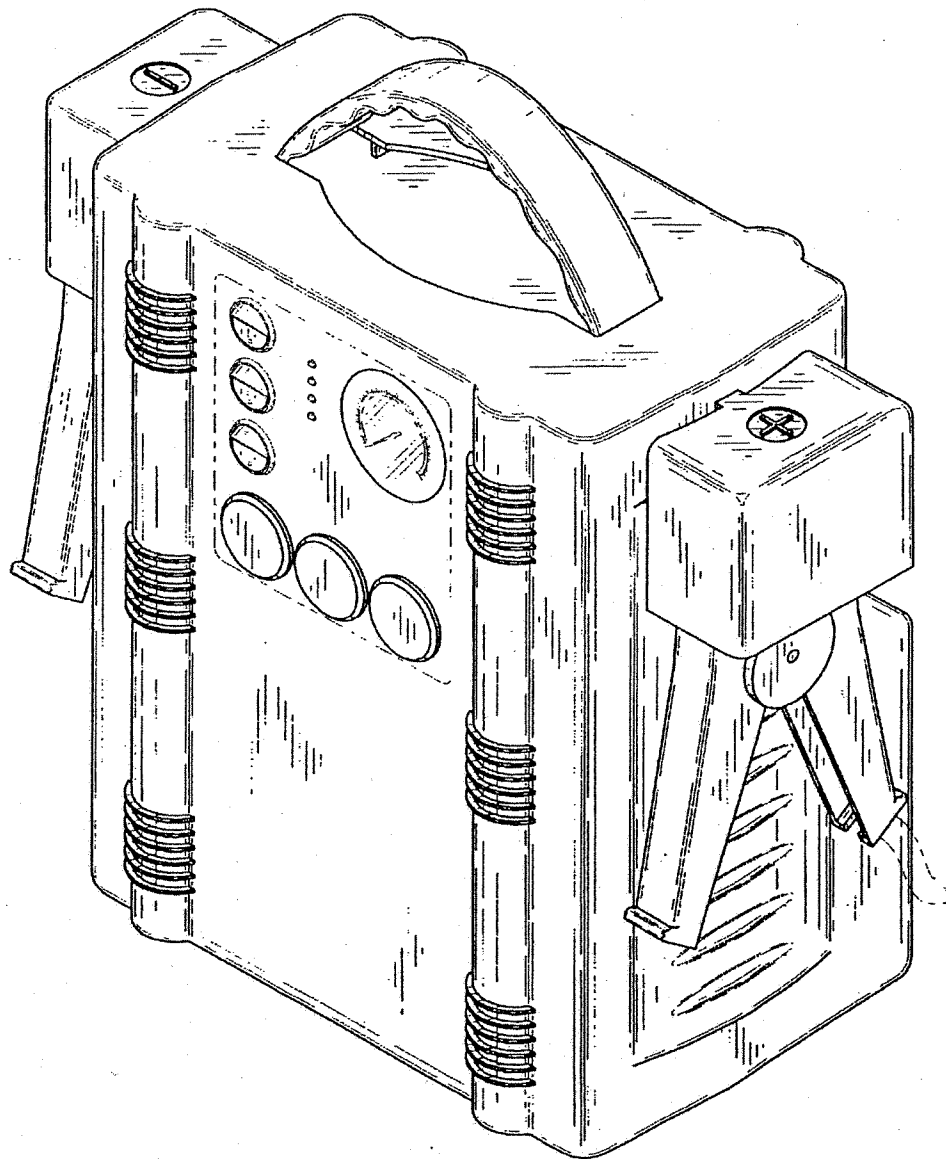


FIG. 2

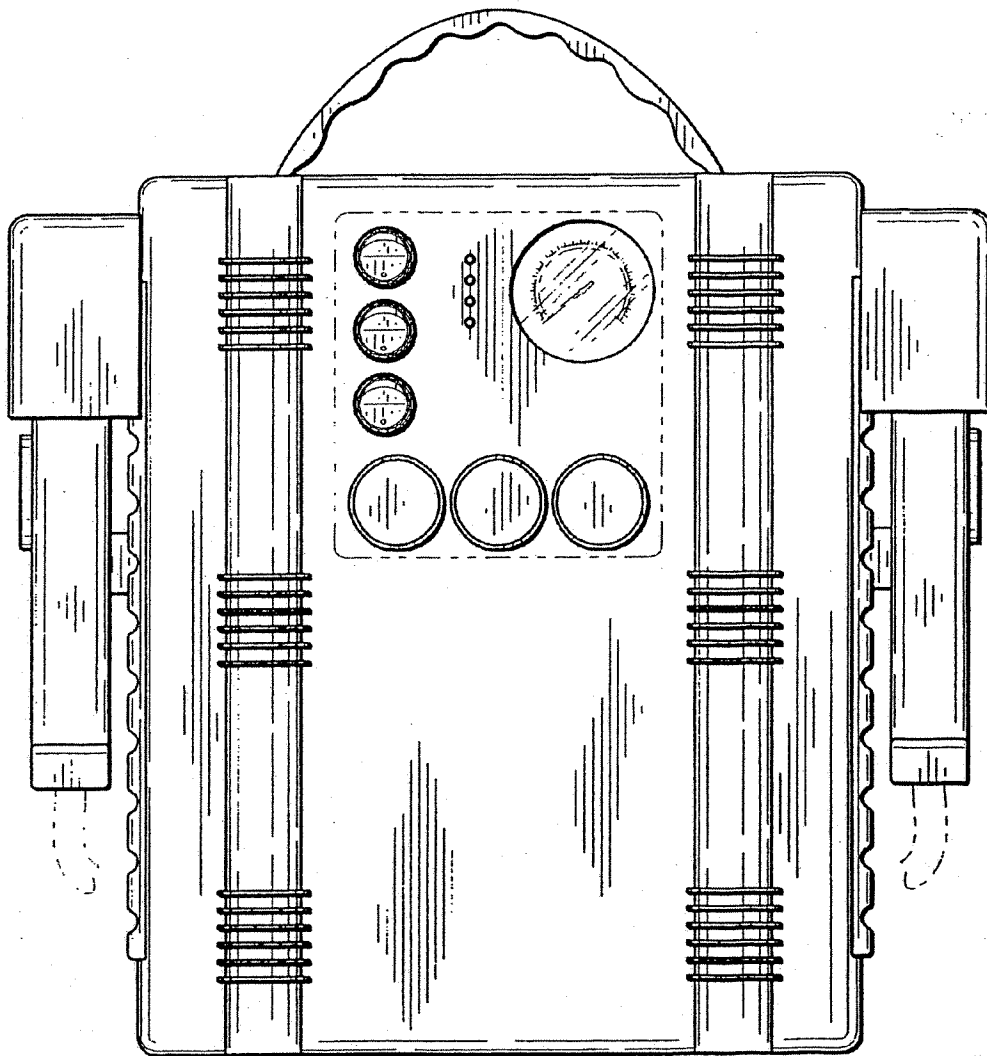


FIG. 3

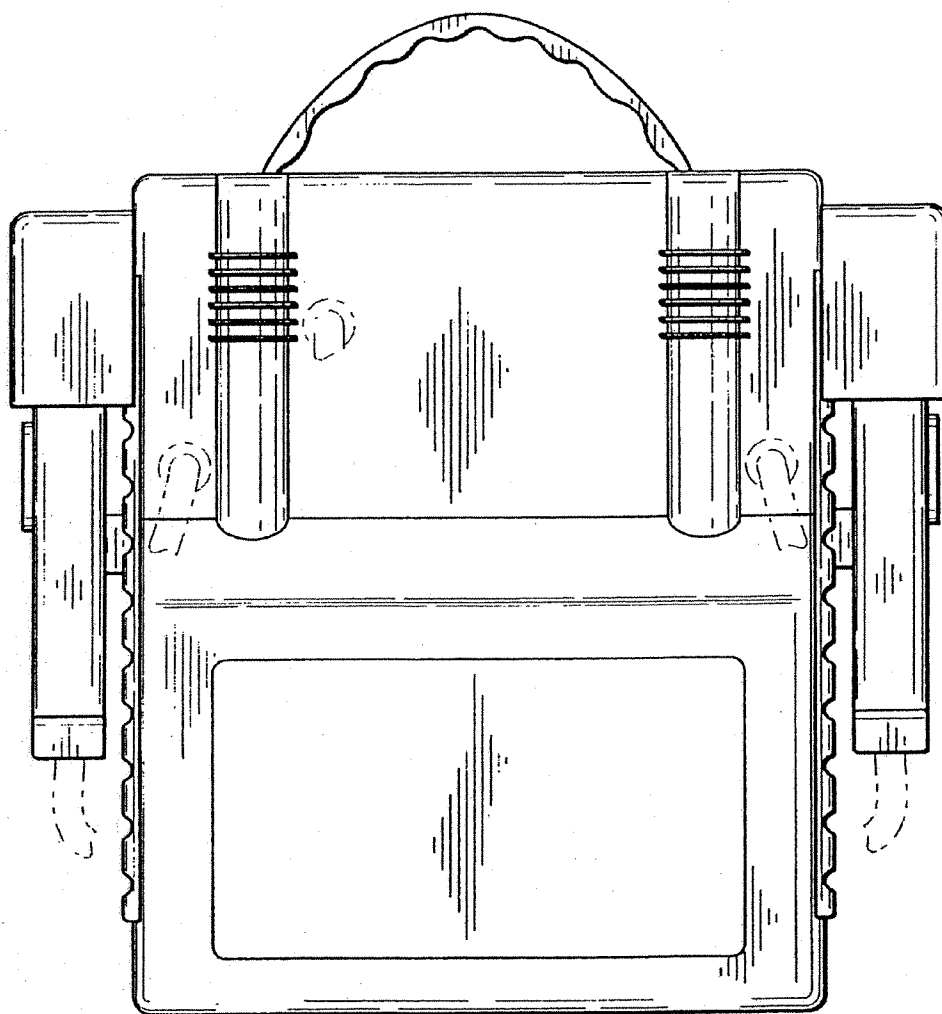


FIG. 4

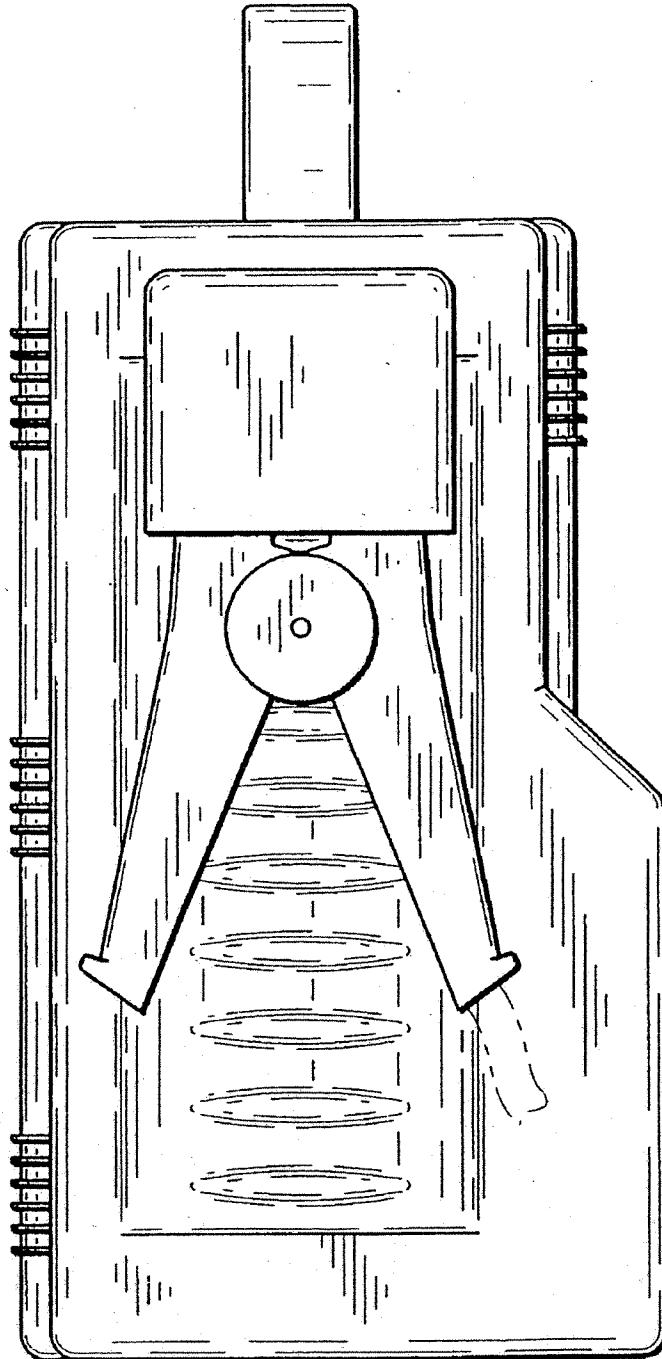
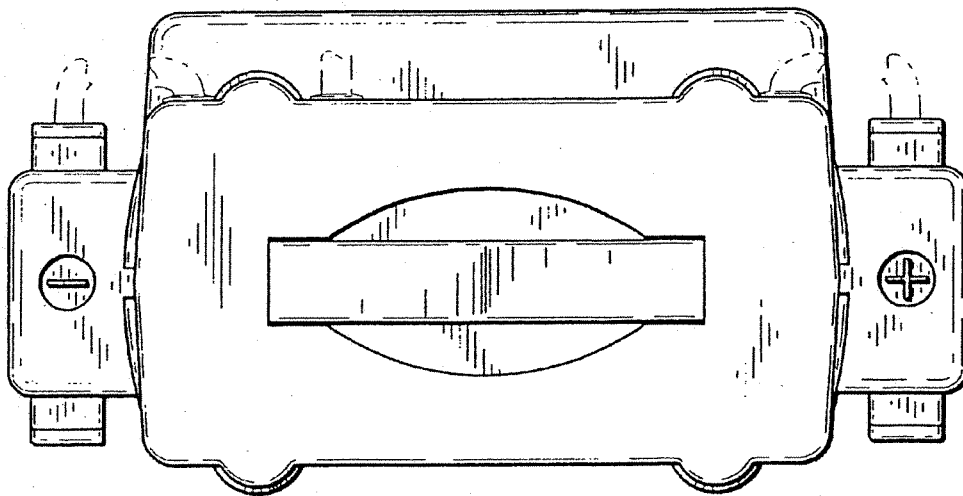


FIG. 5



5

ASSIGNMENT OF DESIGN APPLICATION

Docket Number (Optional)

ROADM 3.1-002

Whereas, I, Mervin A. Dayan of
251 Park Avenue, Oakhurst, NJ 07755

hereafter referred to as assignor, have invented certain new and useful improvements in

PORTABLE POWER STATION

☒ for which an application for a United States Design Patent was filed on October 30, 2001
 Application Number 29/150,972

☐ for which an application for a United States Design Patent was executed by me on _____
 And

Whereas, Roadmaster (USA) Corp.

a corporation of New Jersey herein referred to as "assignee" whose mailing address is
6 Industrial Way West; Building G; Eatontown, New Jersey 07724

is desirous of acquiring the entire right, title and interest in the same;

NOW, THEREFORE, in consideration of the sum of one dollar (\$ 1.00), the receipt whereof is acknowledged, and other good and valuable consideration, I as assignor hereby sell, assign and set over to said assignee the entire right, title and interest for the United States of America and all other countries in and to said invention and the aforesaid design patent application and all original, divisional, continuation, substitute or reissue applications and patents applied for or granted therefor in the United States of America and all other countries, for said invention, including without limitation all applications and patents for said invention claiming priority or benefit of the aforesaid design application pursuant to any law or treaty, and including the right to claim such priority or benefit and the Commissioner of Patents and Trademarks is hereby authorized and requested to issue all patents on said improvements or resulting therefrom to said assignee herein, as assignee of the entire interest therein; and the undersigned for me and my legal representatives, heirs and assigns do hereby agree and covenant without further remuneration, to execute and deliver all original, divisional, continuation, reissue and other applications for Design Patent on said improvements and all assignments thereof to said assignee or its assigns, to communicate to said assignee or its representatives all facts known to the undersigned respecting said improvements, whenever requested, to testify in any interferences or other legal proceedings in which any of said applications or patents may become involved, to sign all lawful papers, make all rightful oaths, and to do generally everything necessary to aid assignee, its successors, assigns and nominees to obtain patent protection for said improvements in all countries, the expenses incident to said applications to be borne and paid by said assignee.

11/10/2001
 (Date)

Mervin A. Dayan
 (Signature)

State of NEW JERSEY) SS:

County of MONMOUTH)

On this 10 day of JANUARY, 2002 before me THOMAS MALL personally came the above-named Mervin A. Dayan, to me personally known as the individual who executed the foregoing instrument, who acknowledged to me that the same was executed by him/her of his/her own free will for the purposes therein set forth.

Thomas Mall
 (Notary Public)

4

Int. Cl.: 9

Prior U.S. Cls.: 21, 23, 26, 36, and 38

United States Patent and Trademark Office

Reg. No. 2,594,538

Registered July 16, 2002

TRADEMARK
PRINCIPAL REGISTER

JUMP N START

ROADMASTER USA CORP. (NEW JERSEY CORPORATION)
6 INDUSTRIAL WAY WEST, BLDG. G
EATONTOWN, NJ 07724

FIRST USE 3-0-1998; IN COMMERCE 3-0-1998.

SN 75-412,359, FILED 12-30-1997.

FOR: BATTERY-CHARGING SYSTEM, NAMELY,
A PORTABLE BATTERY AND BATTERY CABLES,
IN CLASS 9 (U.S. CLS. 21, 23, 26, 36 AND 38).

JAMES GRIFFIN, EXAMINING ATTORNEY

5

Certificate of Registration



This Certificate issued under the seal of the Copyright Office in accordance with title 17, United States Code, attests that registration has been made for the work identified below. The information on this certificate has been made a part of the Copyright Office records.

Marybeth Peters

Register of Copyrights, United States of America

FORM VA

— Mark of the Visual Arts —
VA 1-261-495

EFFECTIVE DATE OF REGISTRATION

Month July Day 21 Year 2004

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1

TITLE OF THIS WORK ▼

JNS1880 Portable Power & Air Station Product Packaging

NATURE OF THIS WORK ▼ See instructions

Product Packaging

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Under the law the author of a "work made for hire" is generally the employer not the employee (see instructions). For any part of this work that was made for hire check "Yes" in the space provided give the employer (or other person for whom the work was prepared) as Author of that part and leave the space for dates of birth and death blank.

NAME OF AUTHOR ▼

a Roadmaster (USA) Corp

DATES OF BIRTH AND DEATH
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Was this contribution to the work a "work made for hire"?
☐ Yes
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Author's Nationality or Domicile
Name of Country
OR { Citizen of USA
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Was This Author's Contribution to the Work
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If the answer to either of these questions is "Yes," see detailed instructions.

NATURE OF AUTHORSHIP Check appropriate box(es) See instructions

☒ 2 Dimensional artwork ☐ Map ☐ Technical drawing
☐ Reproduction of work of art ☐ Photograph ☐ Text
☐ Jewelry design ☐ Architectural work

NAME OF AUTHOR ▼

b

DATES OF BIRTH AND DEATH
Year Born ▼ Year Died ▼

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☐ No

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Name of Country
OR { Citizen of USA
Domiciled in USA

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Pseudonymous? ☐ Yes ☐ No
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2001 Year

This information must be given in all cases.

b Date and Nation of First Publication of This Particular Work

Complete this information ONLY if this work has been published. Month JUNE Day 15 Year 2001
USA Nation

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COPYRIGHT CLAIMANT(S) Name and address must be given even if the claimant is the same as the author given in space 2 ▼

Roadmaster (USA) Corp
6 Industrial Way West, Building G, Eatontown, NJ 07724

Transfer If the claimant(s) named here in space 4 is (are) different from the author(s) named in space 2 give a brief statement of how the claimant(s) obtained ownership of the copyright. ▼

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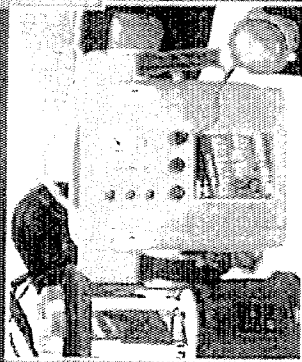
Page 1 of _____ pages

Roadmaster

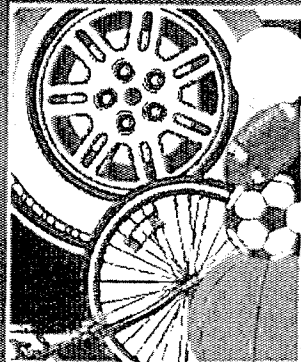
JNS1880 ENGLISH FRONT PANEL
VERIFY IN FIELD - SIZE TO FIT

PORTABLE RECHARGEABLE JUMP START POWER STATION AIR COMPRESSOR

Built-in booster cables help jump-start your car when there's no help around!



Provides three 12V/10C outputs to provide power to any 12Volt DC product.



Built-in air compressor inflates tires, air mattresses, water balloons, inflatable toys, sports equipment. Includes air pressure gauge!



Verify in field
of fit the unit

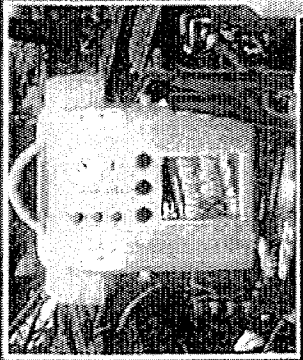
JUMP
START
PORTABLE
RECHARGEABLE
POWER
STATION
AIR
COMPRESSOR

JUMP
START
YOUR CAR
AT THE MIDDLE
OF NOWHERE
WHEN THERE ARE
NO OTHER CARS AROUND!

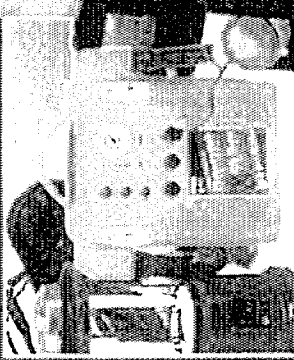
Roadmaster

JNC1880
SPANISH BACK PANEL
VERIFY IN FIELD
SIZE TO FIT

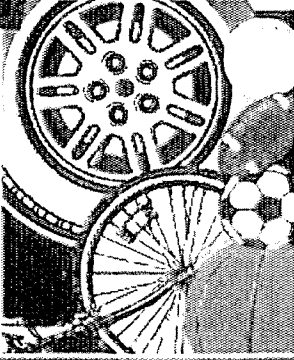
**Jump
Start**



Con Cables Para El Arranque De Su
Caro.



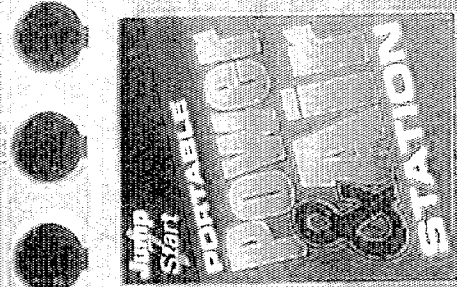
Contiene Dos Salidas De 12 Voltios
De Corriente Directa Para Usar Con
Perifoneos De 12 Voltios DC.



Incluye un conjunto de cable para cargar
baterías, eschabas de auto, baterías, juguetes y
perifoneos de 12 voltios.
Incluye audífonos de primer

ESTACION DE

Energia & Compresor de Aire



Recarga el auto
y el equipo de
camping.

ARRANQUE
SU CARRO EN
LUGARES
DESOLADOS
SIN OTROS
CARGOS ALTERNATIVOS

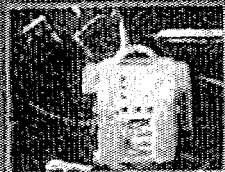
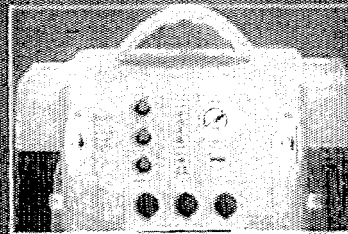
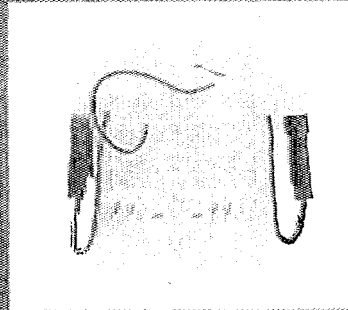
JNS1880 ENGLISH SIDE PANEL
VERIFY IN FIELD - SIZE TO FIT

Roadmaster

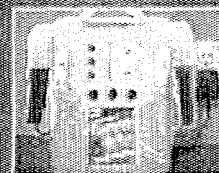
PORTABLE
RECHARGEABLE
**POWER
STATION**
**& AIR
COMPRESSOR** Jump
Start

FEATURES:

- Battery booster cables.
- **250 PSI AIR COMPRESSOR** with pressure gauge and auto shut-off feature.
- **TWO** powerful work lights.
- **THREE** 12 Volt DC outputs.
- LED warning lights for battery condition and charging status.
- In-line fuse protection.
- **SIX** inflating needles.
- Heavy duty compressor hose with tire valve fitting.
- AC and DC adapter stored in back compartment.
- **FOUR** extra fuses.



• Recharge unit in a 120 volt wall outlet or with the 12 volt DC cigarette lighter adapter in your car.



JNS1880 SPANISH SIDE PANEL
VERIFY IN FIELD - SIZE TO FIT

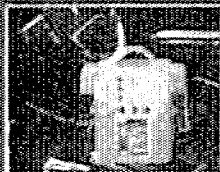
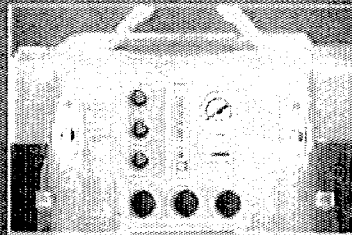
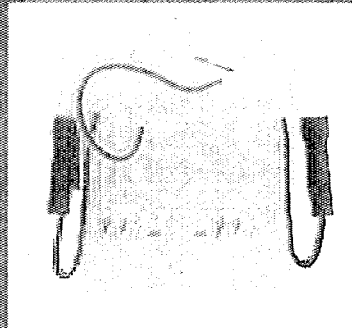
Roadmaster.

ESTACION DE Energia & compresor de Aire PORTATIL

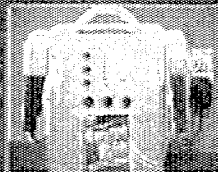
Jump
Start

FUNCIONES:

- Cables para arranque de su carro.
- COMPRESOR de AIRE con 250 psi con medidor de presión.
- DOS lamparas de trabajo de alto alumbrado.
- TRES salidas de 12 Volts.
- Luces de aviso para condiciones de la batería.
- Fusible en línea para proteger su unidad.
- SEIS adaptadores para inflar.
- Compresor fuerte con válvula de cierre.
- Compartimento para los adaptadores de corriente de alterna y directa.
- CUATRO fusibles de repuesto.



• Recarga su unidad con 110V en su casa y con adaptador de 12V en el secador de cigarrillo de su auto.



JNS1880 TOP PANEL
VERIFY IN FIELD - SIZE TO FIT

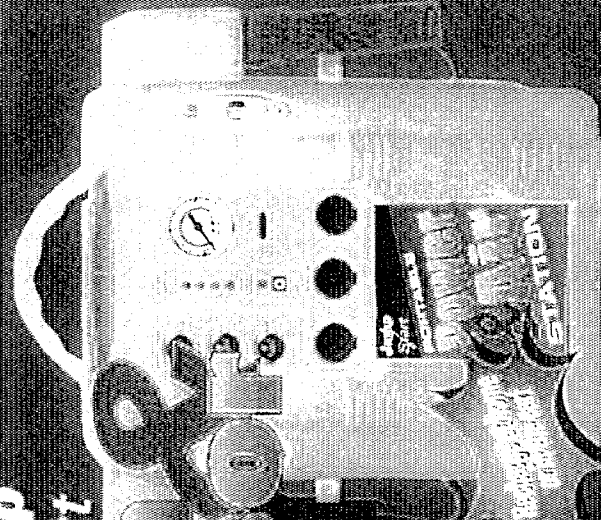
Roadmaster

**Jump
Start**

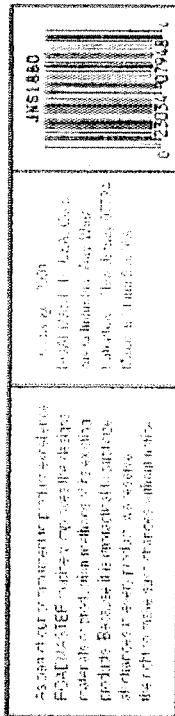
PORTABLE • RECHARGEABLE

Power Station & Air Compressor

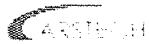
- Built-in booster cables to jump your car.
- 12 volt 17.2Ah sealed lead-acid **RECHARGEABLE** battery.
- LED displays for **FULL/CHARGE/LOW/GOOD** indications.
- Provides **THREE** 12 volt DC outputs to provide power to any 12 volt DC product.
- Recharge unit with 12 volt adapter using 110 volt wall outlet or with 12 volt DC cigarette lighter adapter in your car.
- Built-in **250 PSI AIR COMPRESSOR** with air pressure gauge for inflating tires, inflatable toys, air mattresses, water rafts, sports equipment, etc.



JNS1880 Bottom Panel

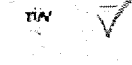


6



SINOCHEM NINGBO
CARSTECH MANUFACTURING CO.
NINGBO, CHINA

DENG HAIJUN
Manager



211100 Ningbo, Ningbo City, China
Tel: +86 574 86888888
Fax: +86 574 86888888
E-mail: denghaijun@carstech.com
Http: www.carstech.com



Cady Yu
Sales Manager

USA Office
1627 Sycamore, San Jose, CA 95128
Tel: 408 501 7275
Fax: 408 501 7276
Email: cady@carstech.com



China Headquarters
211100 Ningbo, Ningbo City, China
Tel: +86 574 86888888
Fax: +86 574 86888888

www.carstech-usa.com

CARSTECH

J4



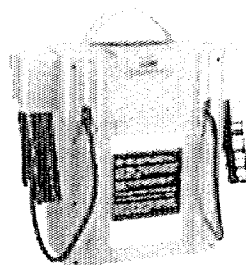
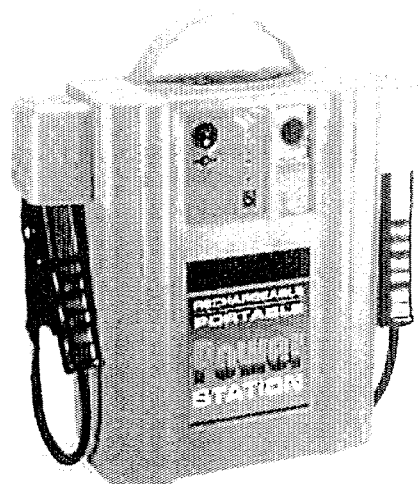
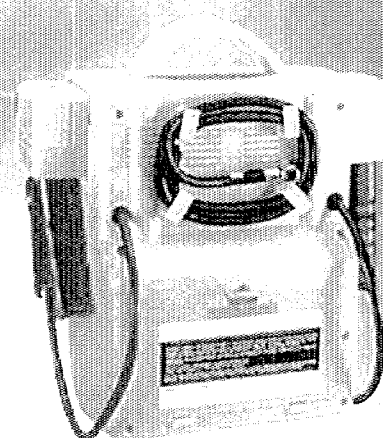
PROFESSIONAL CAR ACCESSORIES





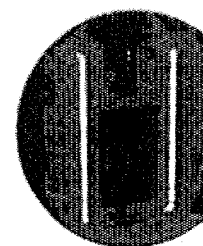
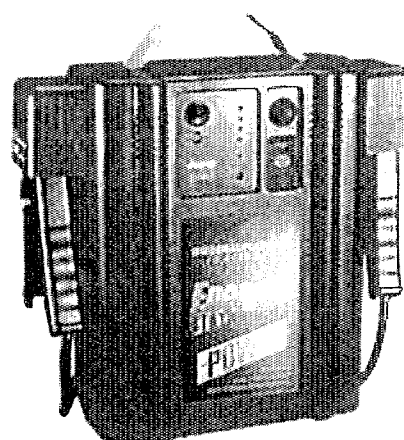
01.03.010

Jump starter with compressor
Built-in 12V 17.2AH sealed battery
2 DC12V cigarette plug sockets
250PSI air compressor
2 working lights
Packing: 1pc/color box, 2pcs/ctn
G.W./N.W.: 13/16kg
Meas.: 41X36X34.5cm 1:120pcs/20'



01.01.010

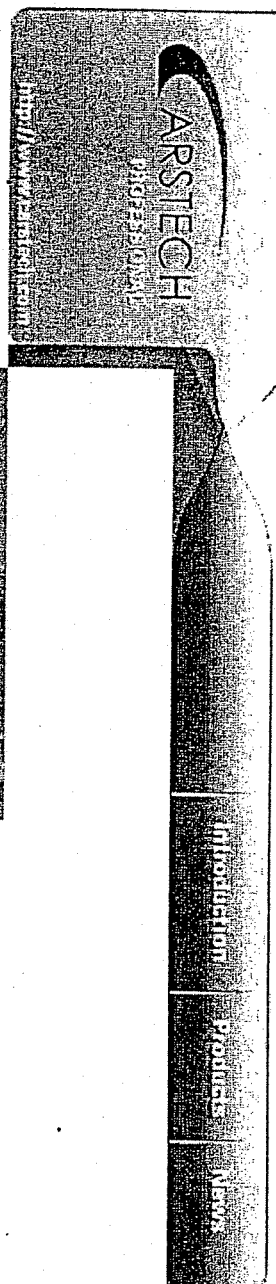
Jump starter
Built-in 12V 17.2AH sealed battery
2 DC12V cigarette plug sockets
Packing: 1pc/color box, 2pcs/ctn
G.W./N.W.: 13/16kg
Meas.: 38X36X34.5cm 1:200pcs/20'



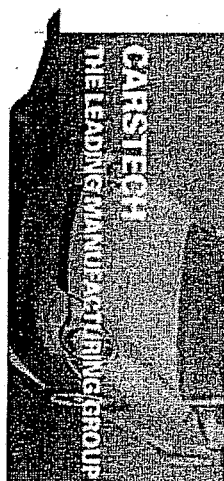
01.02.010

Jump starter with neonlight
Clear case, any color available
Built-in 12V 17.2AH sealed battery
2 DC12V cigarette plug sockets
Built-in neon light
Packing: 1pc/color box, 2pcs/ctn
G.W./N.W.: 13/16kg
Meas.: 38X28X34.5cm 1:300pcs/20'

7



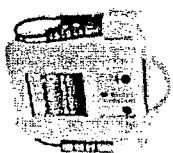
Production line
R&D system
Warehouse
Equipment
QC system
Sitemap
LINK
FAQ



Products List

POWER STATION

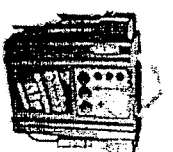
CAR ACCESSORIES
THERMOMETER
WOOFER BOX
CAR TOOLS
RACHET STARP & BOOST CABLE
GEAR KNOB
WHEEL LOCK
CAR COVER & SEAT COVER
ORNAMENT LIGHT
NEON LIGHTS
CAR POLISHER
AIR COMPRESSOR
WORKING LAMP
ALARM LAMP
CAMPING LIGHT
SPOT LIGHT
POWER STATION



01.01.010



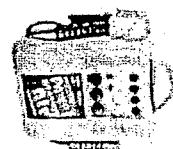
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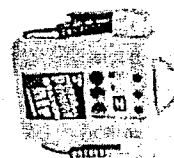
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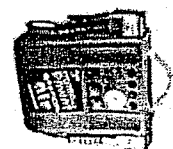
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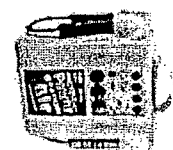
01.13.010



01.11.011



01.13.011

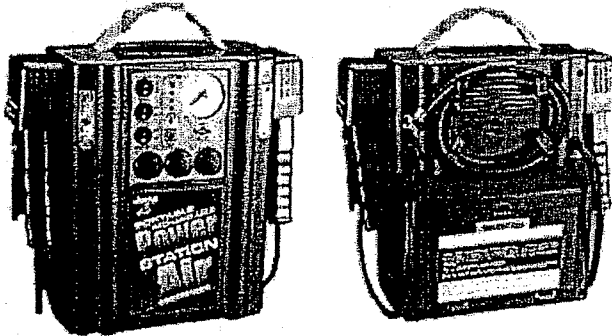
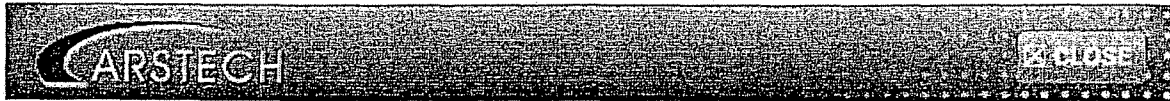


01.13.110

PRE | NEXT



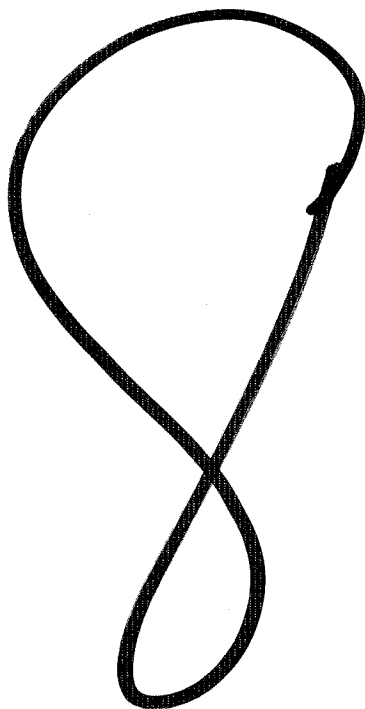
COPYRIGHT CARSTECH SINOCEM NINGBO IMP & EXR CO.,LTD.



Portable power station
Built in 12V 17.2AH sealed battery
2 DC12V cigarette plug sockets
250PSI air compressor
2 working lights
Packing: 1pc/color box, 2pcs/ctn
G.W./N.W.: 18/16kg
Meas.: 41X36X34.5cm 1,120pcs/20'

01.03.010





WELCOME TO SINOCHEN NINGBO LTD.

FEEDBACK

CONTACT US

LINK SERVICES



CARSTECH
PROFESSIONAL

<http://www.carstech.com>

Introduction

Products

News

Production line

R&D system

Warehouse

Equipment

QC system

SiteMap

LINK

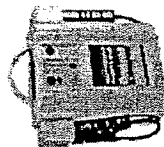
FAQ



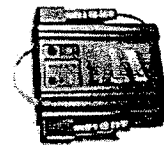

Products List

CAR ACCESSORIES
THERMOMETER
WOOFER BOX
CAR TOOLS
RACHET STARP & BOOST CABLE
GEAR KNOB
WHEEL LOCK
CAR COVER & SEAT COVER
ORNAMENT LIGHT
NEON LIGHTS
CAR POLISHER
AIR COMPRESSOR
WORKING LAMP
ALARM LAMP
CAMPING LIGHT
SPOT LIGHT
POWER STATION

POWER STATION



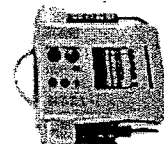
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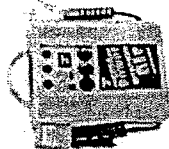
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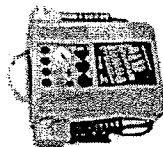
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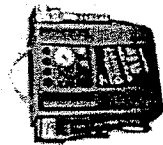
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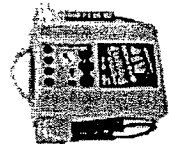
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01.13.010



01.13.011

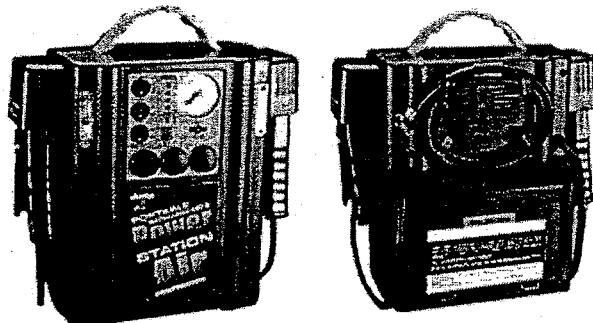


01.13.110

PRE | NEXT



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Portable power station
Built in 12V 17.2AH sealed battery
2 DC12V cigarette plug sockets
250PSI air compressor
2 working lights
Packing: 1pc/color box, 2pcs/ctn
G.W./N.W.: 18/16kg
Meas.: 41X36X34.5cm 1,120pcs/20'

01.03.010



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Track this shipment via the DHL Web Site : <http://www.dhl.com>

Shipment Air Waybill
(Non negotiable)

333 0898 546

ORIGIN

DESTINATION CODE
ELA

1 Payer account number and insurance details

Charge to ☐ Shipper ☐ Receiver ☐ 3rd party

Payer Account No. ☐ Cash ☐ Cheque ☐ Credit Card

Shipment Insurance see reverse ☐ Yes ☐ No

Not all payment options are available in all countries.

2 From (Shipper)

Shipper's account number
600064819

Contact name
MR DENGHAJUN

Shipper's reference (up to 32 characters but only first 12 will be shown on invoice)

3 To (Receiver)

Company name
SINOCHEN NINGBO IMP LTD.

Address
917 ROOM 21 JIANGXIA ST., PUTA BUILDING NINGBO CHINA

Phone (5000 code required) **+86-574-8738888-6211**

4 Shipment details

Total number of packages	Total Weight kg	Dimensions in cm
Plates	Length	Width
@	@	@
@	@	@
@	@	@
@	@	@

5 Full description of contents

Give content and quantity

power station

6 Dutiable shipments only (WEX) (Customs Requirement)

Attach the original and two copies of a Proforma or Commercial Invoice

Shipper's VAT/GST number

Receiver's VAT/GST or Shipper's EIN/SSN

Declared Value for Customs (as on commercial invoice)

Harmonised Commodity Code if applicable

TYPE OF EXPORT ☐ Permanent ☐ Repair / Return ☐ Temporary

Destination duties/taxes if left blank receiver pays duties/taxes

☐ Receiver ☐ Shipper ☐ Other

7 Shipper's agreement (Signature required)

Unless otherwise agreed in writing, I/we agree that DHL's Terms & Conditions of Carriage are all the terms of the contract between me / us and DHL, and I/ we agree to accept DHL's liability for loss, damage or delay and I/ we agree to indemnify DHL in case of dangerous goods (see reverse).

Signature

Date

/ /

PT10/03 CN

Consignee / Parcel copy

B Services

Domestic ☐ International ☒

Domestic Express ☐ International Express ☐

Domestic Freight ☐ International Freight ☐

Domestic Mail ☐ International Mail ☐

Service Options with charges may apply

☐ Saturday Delivery ☐ Social Pickup

☐ Delivery notification

Other

DIMENSIONAL/CHARGEABLE WEIGHT

kg

CHARGES

Services

Other

Insurance

VAT

CURRENCY

TOTAL

TRANSPORT COLLECT STICKER No.

PICKED UP BY **[Signature]**

Route No.

Time **6** Date **28**

[Ship](#) [Track](#) [Transit Times](#) [Rates](#) [Pickups](#) [Locations](#) [Supplies](#) [Billing](#)[By Number](#) [By Reference](#) [By Email](#) [Signature P.O.D.](#) [Sky Courier Shipments](#)[▶ LOGIN](#) [▶ REGISTER](#)[▶ Customer Service](#)
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TRACKING RESULTS: DETAIL

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Tracking Number: 3330898546

Shipment Summary:

Current Status: Shipment delivered.
Delivered on: 7/6/04 10:30 am
Delivered to: Receptionist
Signed for by: Y MORGAN

Shipment History:

DATE	TIME	ACTIVITY AND COMMENTS	LOCATION
7/6/04	10:30 am	Shipment delivered.	Los Angeles, CA
7/2/04	3:36 pm	Delivery Attempted. Will attempt again next business day.	Los Angeles, CA
6/28/04	10:47 am	Delivery Attempted. Please Call 1-888-273-8876.	Los Angeles, CA
	7:20 am	Arrived at DHL facility.	Los Angeles, CA
6/26/04	5:08 pm	Clearance processing complete.	Los Angeles, CA
	5:04 pm	Arrived at DHL facility.	Los Angeles, CA
	6:29 am	In Transit.	Shanghai, China
	2:48 am	Arrived at DHL facility.	Shanghai, China
6/25/04	9:46 pm	Departing origin. Picked Up by DHL.	Shanghai, China

Shipper:

SINOCHEM NINGBO I/E CORP
31500

Receiver:

CO.,LTD
Los Angeles, 90046

Shipment Detail:

Service: International Express Ship Type: Package
Special: Description:
Weight: 11 Shipper's Reference:
Pieces:

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- ♦ Tracking detail provided by DHL: 7/8/2004, 11:10:56 am pt.
- ♦ For assistance, please [contact us](#).
- ♦ You are authorized to use DHL tracking systems solely to track shipments tendered by or for you to DHL. Any other use of DHL tracking systems and information is strictly prohibited.

10

Claim Chart

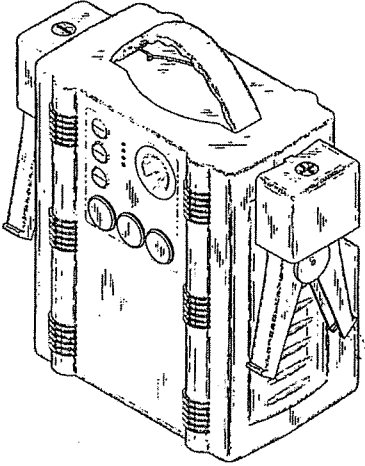
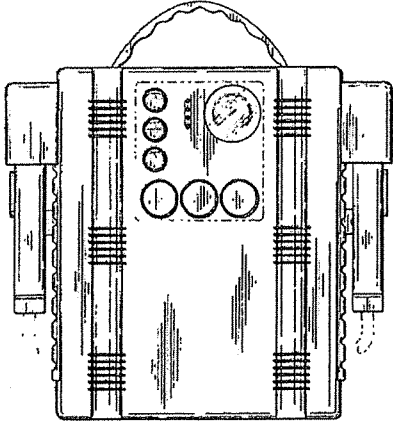
U.S. Patent No. D469,739	Roadmaster JNS1880
U.S. Patent Feb. 4, 2003 Sheet 1 of 5 US D469,739 S FIG. 1 	
U.S. Patent Feb. 4, 2003 Sheet 2 of 5 US D469,739 S FIG. 2 	

FIG. 3

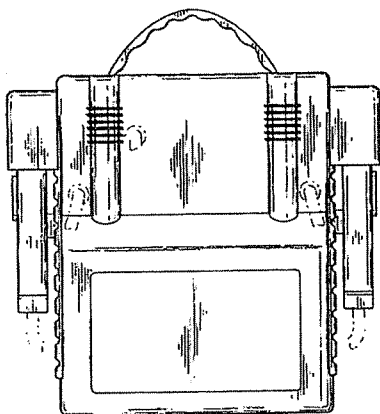


FIG. 4

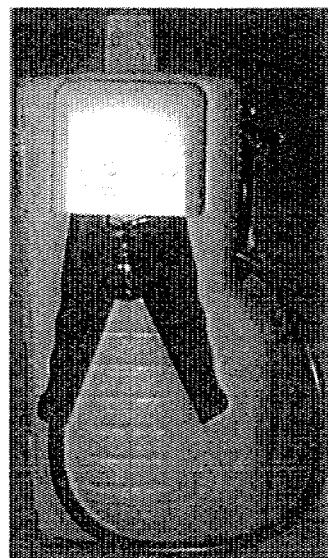
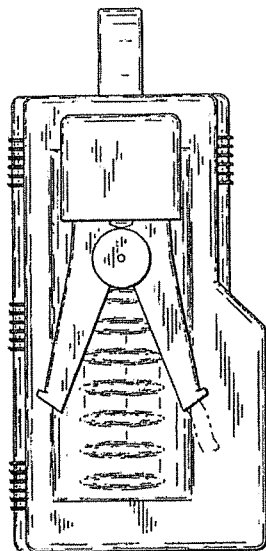
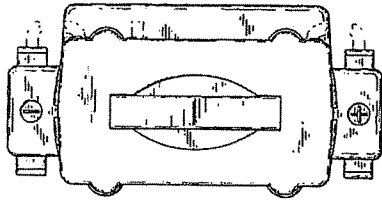


FIG. 5

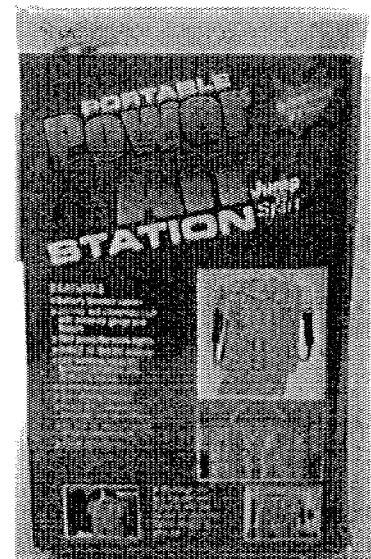
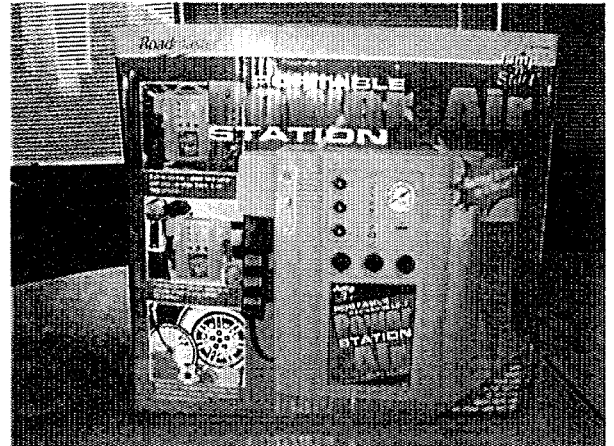


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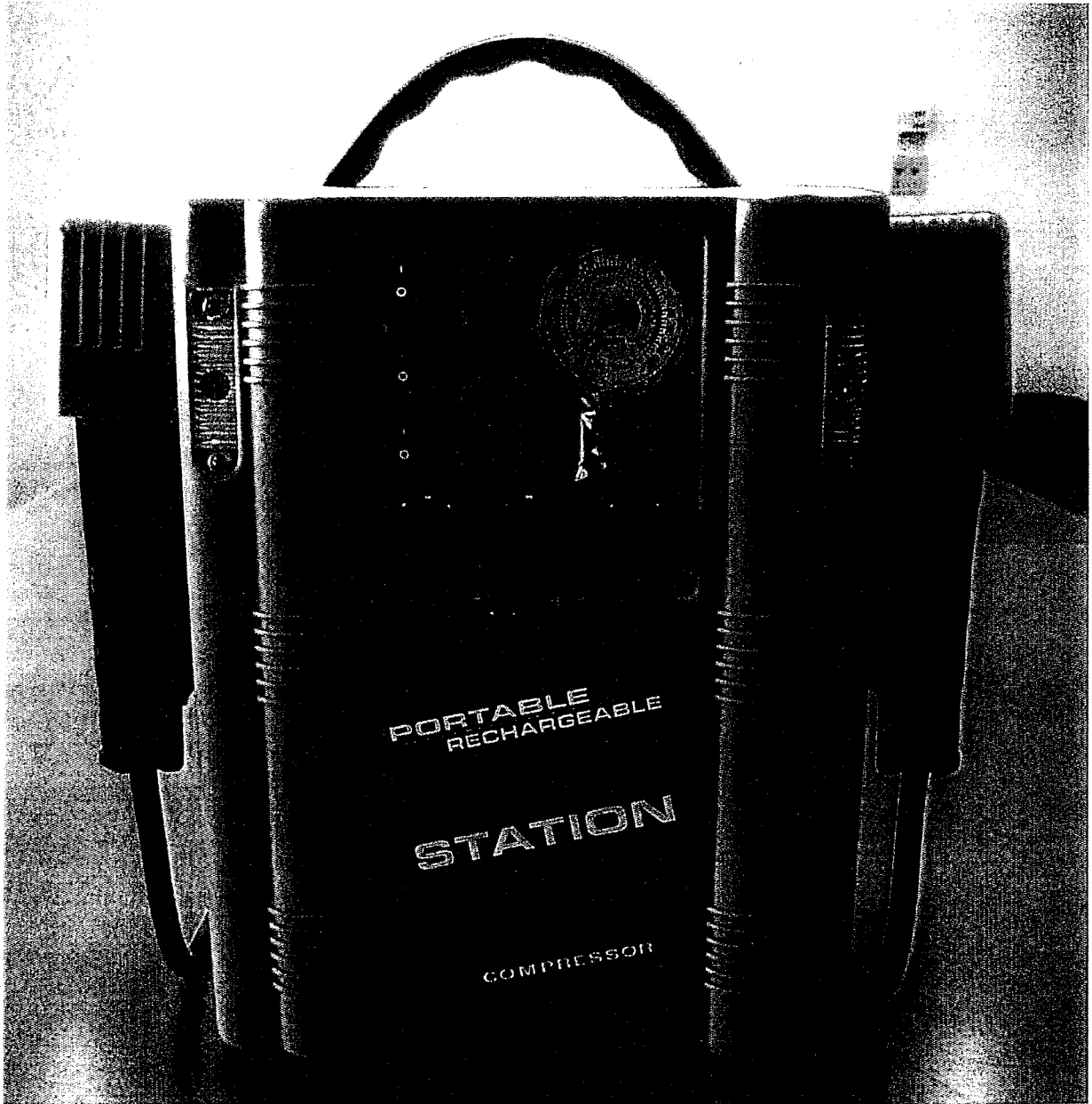
Side-by-Side Comparison of Roadmaster's Copyrighted Work and Roadmaster JNS1880 Product Packaging

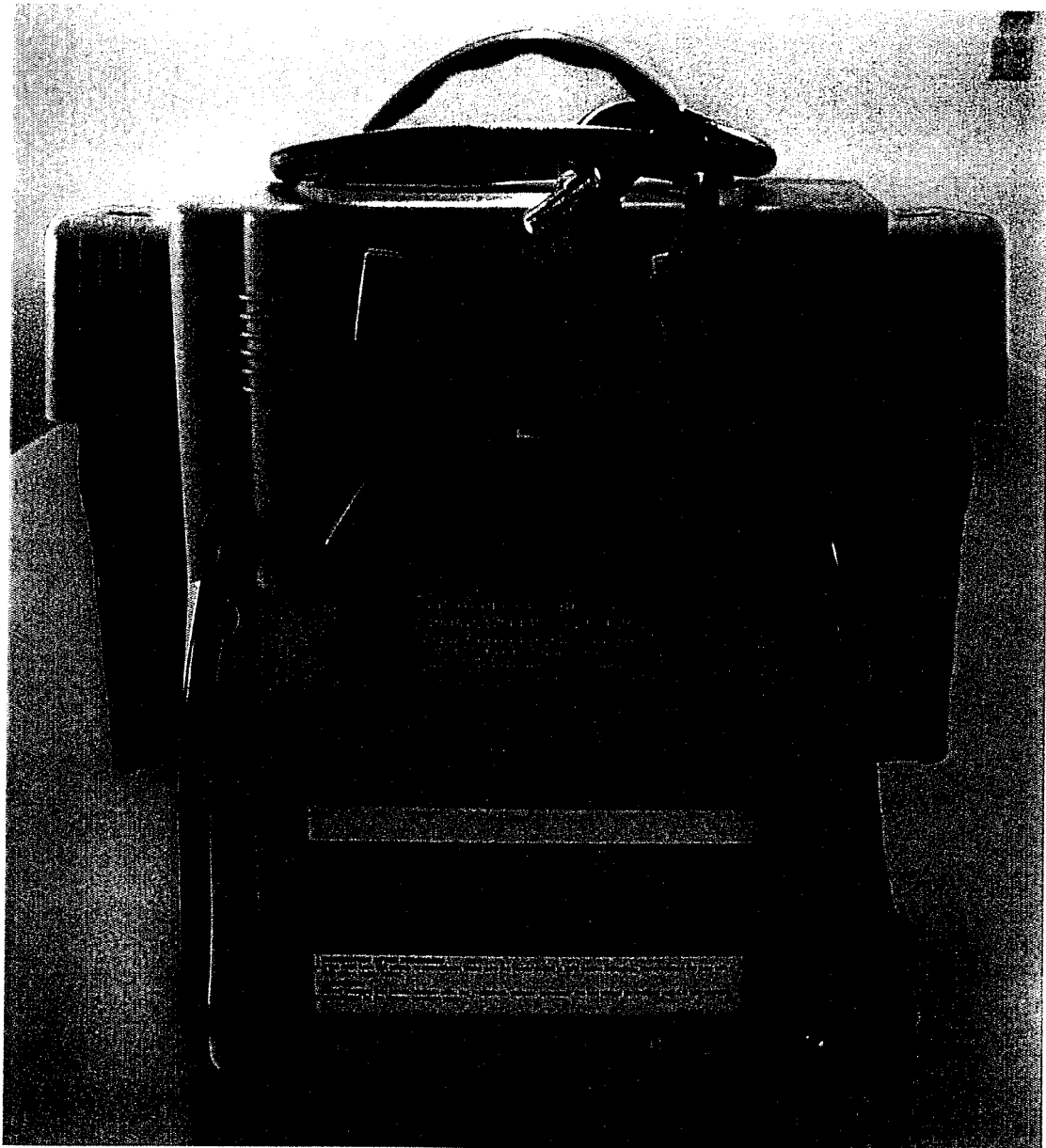
U.S. Copyright Registration No. VA-1-261-495

Roadmaster JNS1880 Product Packaging

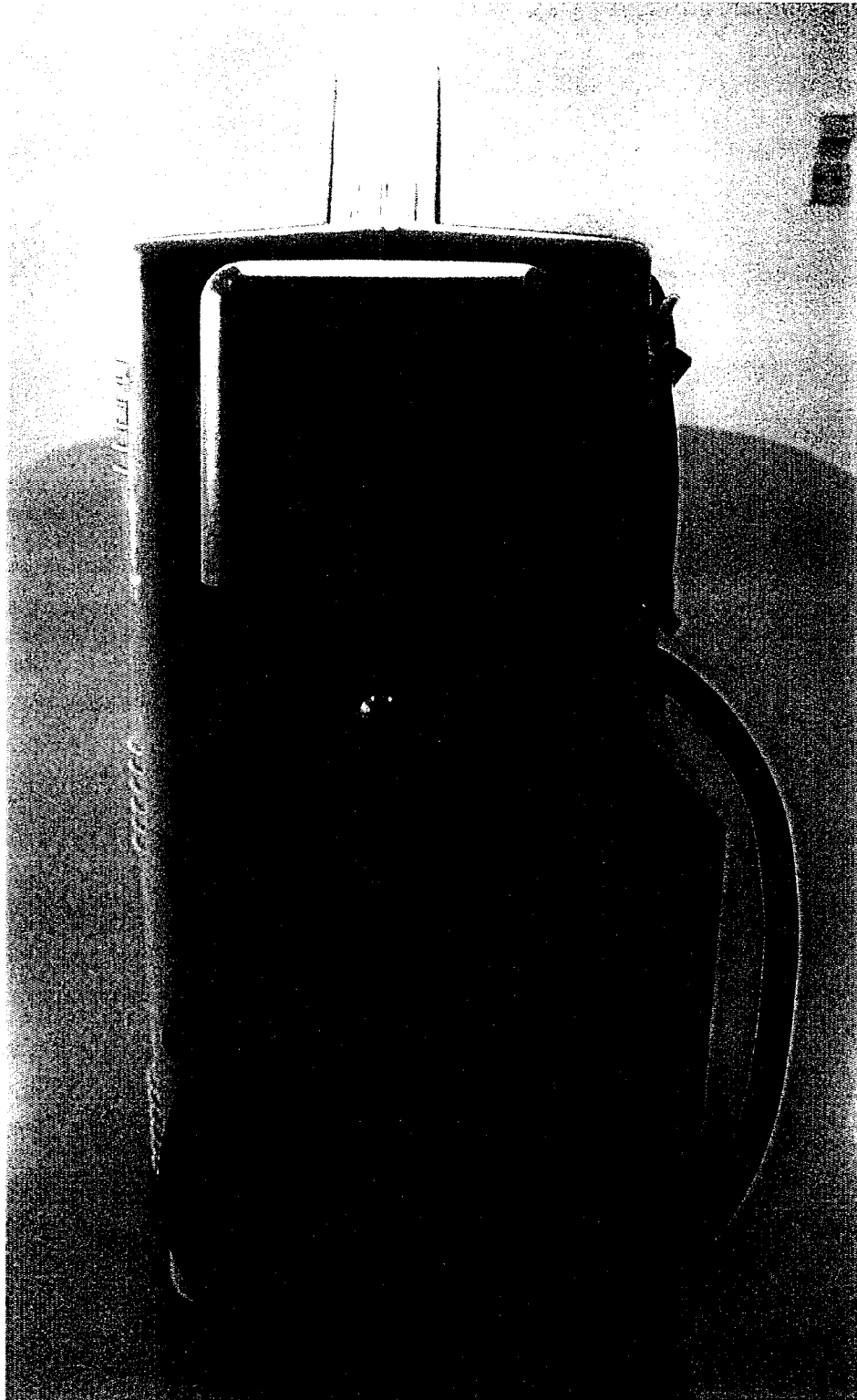


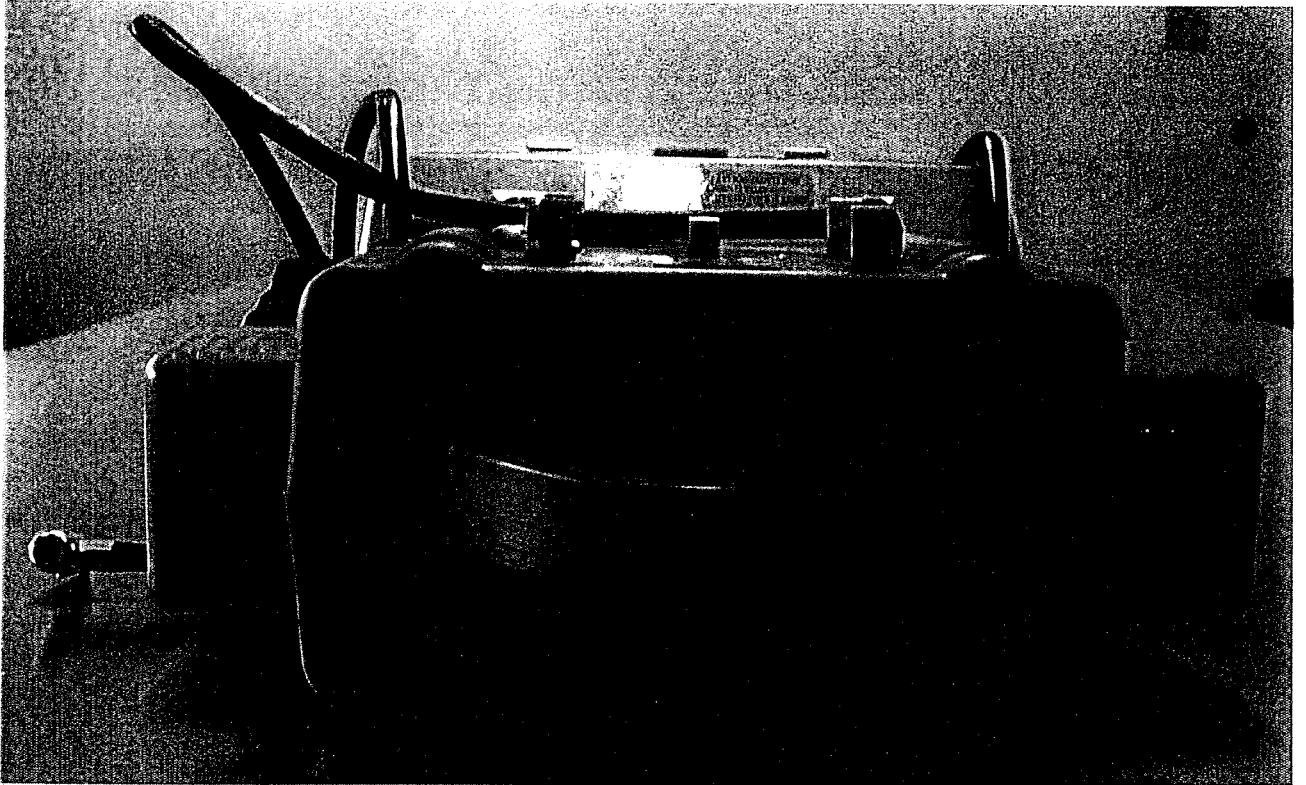
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Claim Chart

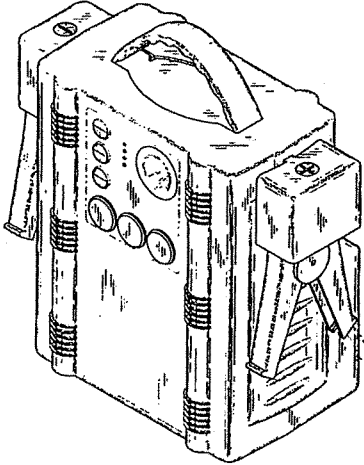
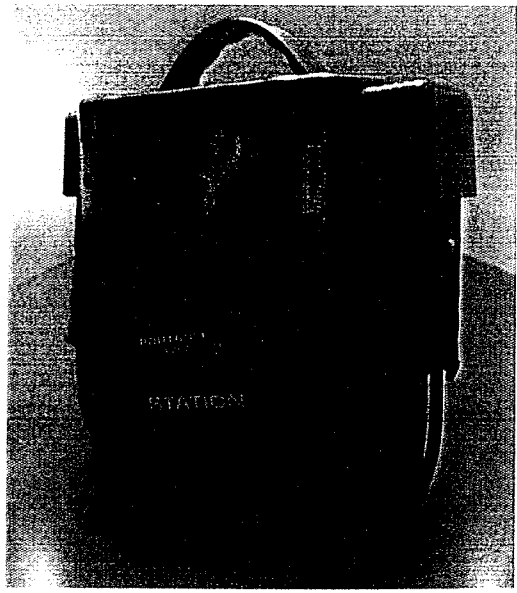
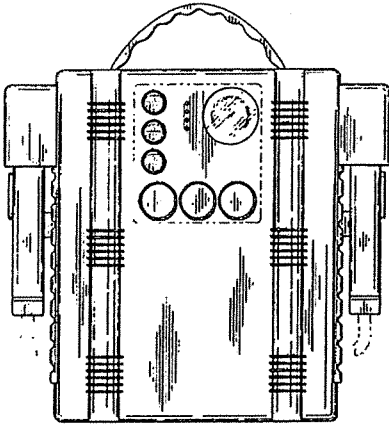
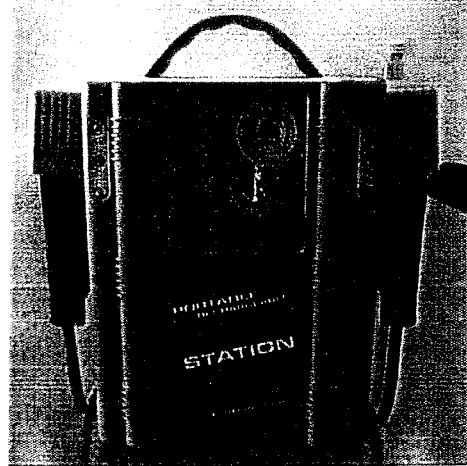
U.S. Patent No. D469,739	Sinochem 01.03.10
U.S. Patent Feb. 4, 2003 Sheet 1 of 5 US D469,739 S FIG. 1 	
U.S. Patent Feb. 4, 2003 Sheet 2 of 5 US D469,739 S FIG. 2 	

FIG. 3

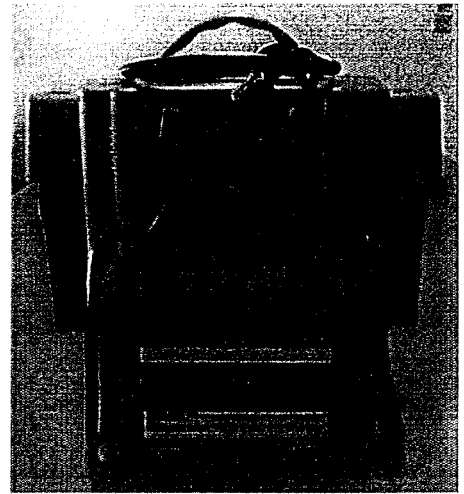
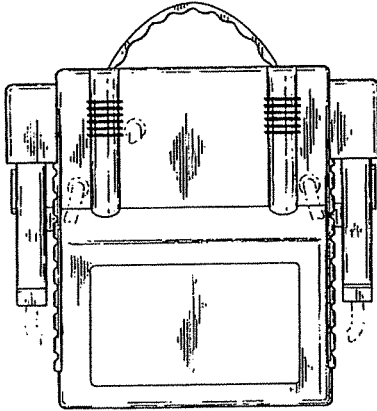


FIG. 4

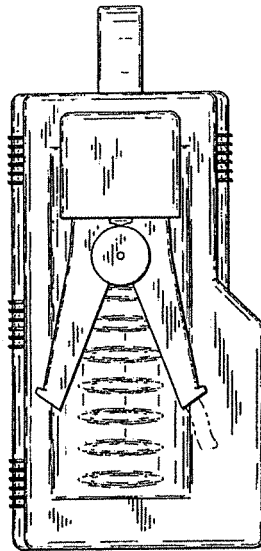
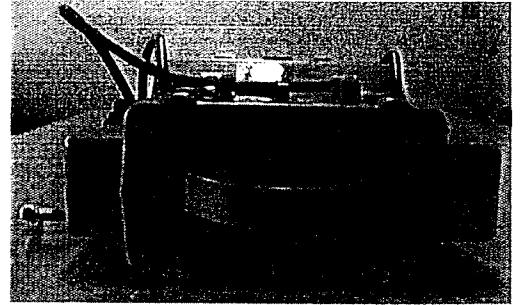
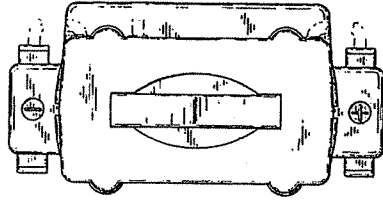
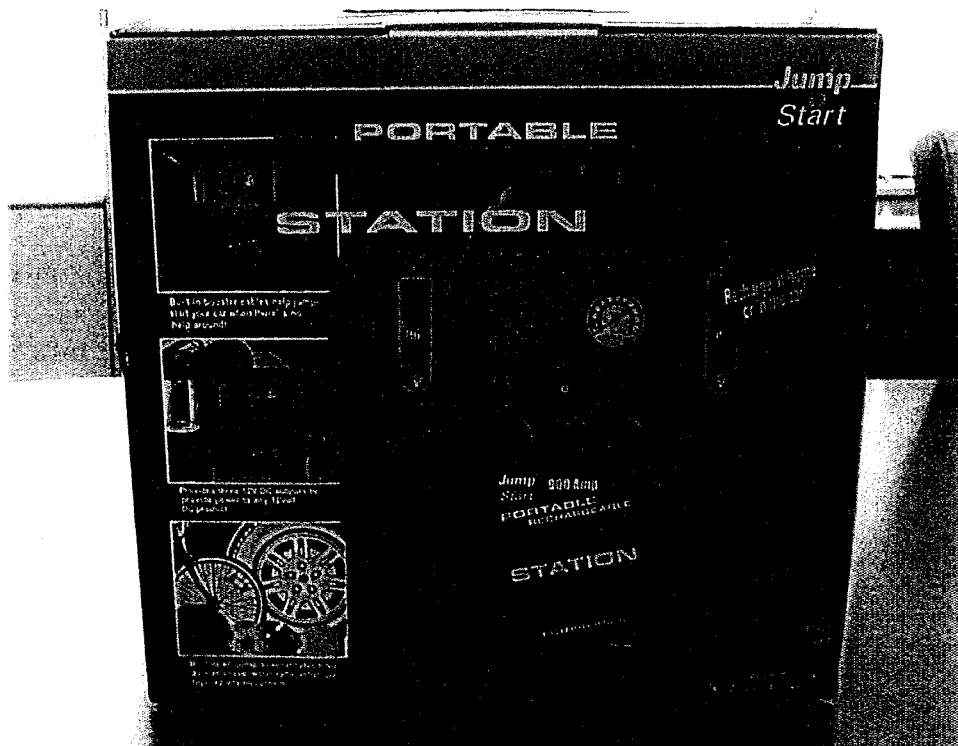
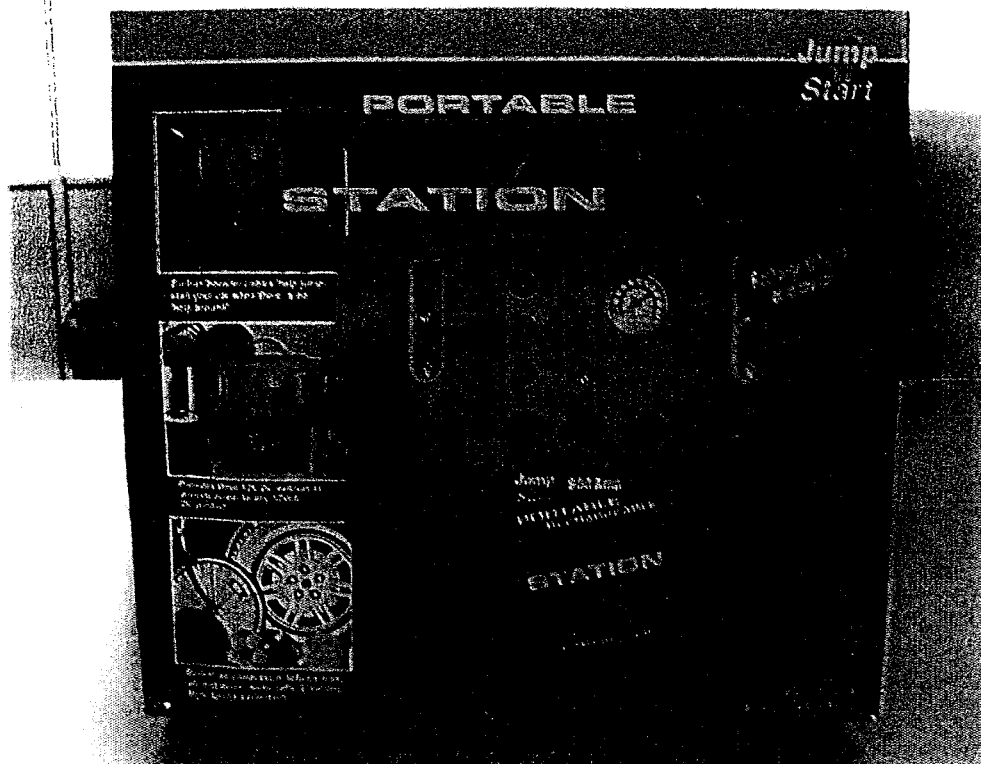
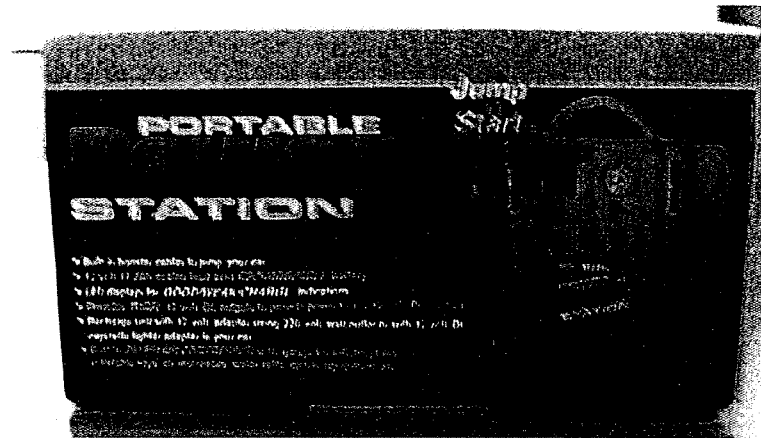


FIG. 5



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Side-by-Side Comparison of Roadmaster's Copyrighted Work and Sinochem 01.03.10 Product Packaging

U.S. Copyright Registration No. VA-1-261-495

Sinochem 01.03.10 Product Packaging

